Date: September 29, 2015

To: Lincoln Township Planning Commission, Township Board and Zoning Administrator

From: Mark A. Eidelson, AICP

Re: *Remaining Draft Portions of the New Zoning Ordinance; Articles 12 – 19*

Attached are the remaining draft portions of the new Zoning Ordinance and include the following:

1. This memo.
2. Updated Table of Contents (insert in place of August 7, 2015 Table of Contents).
3. Articles 12 – 19 (insert in place of previously submitted "blank "Articles).

This set of Articles should be inserted into its appropriate location in a 3-ringed binder containing the previously submitted draft material.

Articles 12 – 19 consist largely of various site development provisions including standards for specific land uses, signs, landscaping/screening and off-street parking. *This is the final draft portion of the new Ordinance.*

Please review this material carefully and identify revisions you feel are beneficial, provisions you feel need further discussion and exploration, or questions you may have.

Please review the following important summary pages before you begin reading these draft Articles.

Article 12: Off-Street Parking

This Article presents provisions addressing off-street parking and loading. This draft Article corresponds most closely to Section 1513 of the current Ordinance. Draft Article 12 is more comprehensive in scope and detail than the current Ordinance. This Article grants added discretion to the site plan approving body so as to avoid the necessity for applicants to go before the ZBA for matters that the site plan approving body can appropriately address.

1. Draft Sec. 12.2(G) permits the site plan approving body to modify the number of required parking spaces in association with shared/joint use parking areas. This is in contrast to the current Ordinance, which defers the matter to the ZBA.
2. Draft Sec. 12.2(G) requires a legal recorded agreement in association with shared/joint use parking areas, a matter about which the current Ordinance is silent.
3. Draft Sec. 12.3(B)(2) and (3) establishes standards regarding parking lot driveway widths and setbacks, a matter about which the current Ordinance is largely silent.
4. Draft Sec. 12.3(C) permits the site plan approving to waive the parking lot paving requirement in specific instances. The current Ordinance does not permit the site plan approving body to exercise discretion in this regard.
5. Draft Sec. 12.3(E) establishes parking lot setbacks, a matter about which the current Ordinance is silent or otherwise vague.

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6. Draft Sec. 12.3(H) establishes provisions addressing service drives and connections between parking lots, matters about which the current Ordinance is silent.
7. Draft Sec. 12.4 presents the requirements for parking spaces per specific use. These requirements are more detailed than the current Ordinance and reflect revisions according to common contemporary practice, including interest in minimizing unused parking areas and impervious surfaces. Section 12.4(A) permits the site plan approving body to reduce the number of required parking spaces during site plan review proceedings rather than require the applicant to seek a variance. The current Ordinance does not permit this flexibility.
8. Draft Sec. 12.5 establishes provisions for loading/unloading areas and generally corresponds to Sec. 1513(5) of the current Ordinance.
    a. Draft Sec. 12.5(B) establishes the number of required loading/unloading spaces. The requirements are more flexible for small buildings than the current Ordinance. Under the current Ordinance, a small 1,500 sq. ft. building would be required to have at least one loading/unloading space. Under draft Sec. 12.5(B), the Planning Commission has the authority to exercise discretion regarding the necessity for such a space for a building up to 5,000 sq. ft.
    b. Draft Sec. 12.5(E) establishes location and setback standards for loading/unloading areas, matters about which the current Ordinance is silent or otherwise vague.

Article 13: Landscaping and Screening

Article 13 presents landscaping and screening requirements for uses subject to site plan approval. Accordingly, this Article does not apply to single family dwellings but, rather, to uses such as commercial and industrial development, institutions, and multiple family developments. Article 13 generally corresponds to Section 1510 of the current Ordinance.

1. Draft Sec. 13.3 identifies specific information that must be presented on a site plan regarding landscape improvements, a matter about which the current Ordinance is silent or vague.
2. Draft Sec. 13.4 establishes front, side and rear yard buffer/landscape areas, and generally corresponds to Sec. 1510(5) but is far more comprehensive and detailed. Substantive differences between the draft and current provisions include:
    a. The draft provisions require front, side and rear yard landscaping in all cases, while the current Ordinance requires such measures only if the abutting property is residential. The draft provisions place greater importance on preserving and enhancing community character – not just buffering between differing districts.
    b. The draft provisions specify minimum standards regarding the number and size of plant material in these landscape/buffer areas. The current Ordinance is silent on this matter.
3. Draft Section 13.5 addresses parking lot landscaping including parking lot perimeter areas and landscape islands in parking areas. The current Ordinance (1510(4)) is vague in its requirements regarding this matter including where parking lot landscaping can or can't be located and whether parking islands are actually required. Draft Section 13.5 strives to provide clarity and specific standards.
4. Draft Section 13.6 requires that In addition to the other landscaping and screening required by this Article, a minimum of one additional tree shall be planted for each 3,000 sq. ft. of impervious surface to be established on the lot. This draft provision is in contrast to the current Ordinance (1510(3)) which requires that 20% of the parcel must be landscaped open space, and requires a minimum of one evergreen tree for each 1,000 sq. ft. of the lot area and one deciduous tree for every 2,000 sq. ft. of lot area. I am suggesting this change for two principal reasons. First, the current requirements may be excessive for larger parcels. Second, the draft provisions link the number of additional tree plantings to the extent of the site being modified – not simply the size of the parcel. I believe this is a more practical and just approach.

Article 14: Environmental Protection

This Article is intended to better assure environmental protection without placing burdens on the Township to regulate activities already addressed by state or federal authorities, except as may desired by the Township. Like the many other Articles, draft Article 14 is more comprehensive and detailed than the environmental provisions of the current Ordinance. Draft Article 14 is most similar to Sections 1514 of the current Ordinance. Principal departures from the current Ordinance are:

1. Draft Section 14.2(B) expressly requires that where a portion of a lot is characterized by sensitive or fragile environmental features, new development on the lot shall only occur on those portions of the lot void of such features, and may require mitigation measures. The current Ordinance is silent on this matter.
2. Draft Section 14.2(C) prohibits the removal of topsoil from a site except in association with an approved permit for development of the site. The current Ordinance is silent or otherwise vague on this matter.
3. Draft Section 14.5 addresses vibrations across property lines, a matter about which the current Ordinance is silent.
4. The current Ordinance (Sec. 1514(6)) merely provides that objectionable noises are prohibited. Draft Section 14.8 addresses noise with far more detail, and in a manner that is more objective and less vulnerable to variable interpretation. The draft provisions establish specific noise threshold standards based on the time of day and District. The specific decibel levels included in the provisions are within the range of what is commonly mandated in local ordinances.
5. Draft Section 14.9 establishes special “natural resources buffer area” regulations regarding wetlands and watercourses. These provisions establish limitations on what may or may not occur within the setback area. The current Ordinance does not address this matter. Please note that Sec. 14.9(D) identifies specific exemptions for the limitations of this Section, including docks and decks. Officials should review this Section 14.9 very carefully in determining if the provisions are desirable, with or without revisions.
6. Draft Section 14.10 establishes regulations regarding storm water management, a matter about which the current Ordinance is largely silent.

Article 15: Access and Private Roads

1. Draft Sections 15.2 and 15.3 present provisions that require all lots to have access to a public or private road, and establish minimum standards for driveways serving dwellings and other uses. The standards presented in Section 15.3 are intended to support emergency vehicle access and safe vehicular traffic patterns in association with ingress/egress points. The current Ordinance is silent or otherwise vague on the matters addressed by Sections 15.2 and 15.3.
2. Draft Sec. 15.4 carries forward the same clear vision standards for intersections as the current Ordinance (1506(7)) except that while the current Ordinance prohibits anything in excess of 2’ in height above the road grade in the clear visions zone, draft Sec. 15.4 limits the clear vision zone to between 2’ and 10’ above road grade.
3. Draft Sec. 15.5 addresses private roads. The Article establishes review procedures, application requirements, and design standards. Draft Section 15.5 generally corresponds to Sec. 1515 of the current Ordinance. Substantive differences include.
    a. Draft Sec. 15.5 is generally more detailed in wording and comprehensive in scope.
    b. The requirements and standards of draft Sec. 15.5 apply to all private roads irrespective of the number of lots or dwellings that are served by the road. The current Ordinance’s provisions apply only to private roads that serve more than four dwellings/lots.

c. Design standards were modified as follows, according to draft Sec. 15.5(E):
   - The required minimum road width has been increased from 18' to 20' (Sec. 15.5(E)1).
   - The minimum easement/right-of-way width has been increased from 33' to 66' (Sec. 15.5(E)1).
   - The maximum length of a dead-ended road has been reduced from one-half mile to 500' (Sec. 15.5(E)2).
   - While the draft Ordinance includes a vague provision that a private road have a surface "reasonably sufficient to permit year-round travel," draft Sec. 15.5(E)4 presents specific standards.
   - The current Ordinance requires no minimum vertical clearance along private roads to ensure emergency vehicle access. Draft Sec. 15.5(E)5 requires a 14' vertical clearance.

d. Draft Sec. 15.5(F) permits the site plan approving body to waive or modify design standards rather than the applicant going before the ZBA. The current Ordinance does not permit this flexibility.

e. Article 15 does not expressly require the establishment of a Homeowners Association for the continued maintenance of a private road, as does the current Ordinance. Rather, draft Article 15 requires that a road easement and maintenance easement be legally recorded and provide for the continued maintenance. While plated and condominium subdivisions typically have a homeowners association, there are some development options that do not readily lend themselves to the creation of homeowners associations, such as incremental land divisions by a landowner.

Article 16: Signs

Article 16 addresses signs. Signage has come under more and more legal scrutiny in regard to violations of First Amendment free speech and due process guarentees, including the lack of clear standards. The current Ordinance is woefully deficient regarding sign regulation, within the context of both the scope of provisions and the vague character of many of the provisions. Officials will likely find Article 16 to be "numbing" with an overload of specificity, but the specificity is required if the provisions are to be enforceable, defensible and applied consistently. Of course, the township is free to be as flexible as it desires and may chose to revise or otherwise delete substantial portions of the Article. *However, whatever is retained must have sufficient detail to be enforceable and applied consistently.*

The deficient nature of the current Ordinance's sign regulations (Sec. 1517) makes it impractical to systematically compare the current Ordinance to the draft Article 16. I have attempted to include brief references where applicable.

When reviewing draft Article 16, I recommend officials not focus solely on how the draft provisions compare to the current Ordinance, but also whether the draft provisions seem reasonable irrespective of the current regulations in place.

Section 16.2 presents definitions for important terms and phrases. The draft definitions are similar in substance to that of Sec. 1517 although new phrases and definitions have been inserted including "electronic message center," "illumination, "and "temporary sign."

Section 16.3 addresses a variety of general sign regulation issues such as review/permitting procedures, materials and construction, maintenance, guidelines for measuring sign area and height, lighting, signs exempt from review, and prohibited signs. The current Ordinance is generally silent on these matters except in the case of exempt signs and prohibited signs.

a. The current Ordinance exempts a wide scope of signs from the requirements of Sec. 1517. How far this exemption goes is unclear. For instance, is a permit necessary for the erection of such "exempt" signs? What is more troubling is that the exemption seems to suggest that

the entities erecting such "exempt" signs are free to make the signs as large as they prefer and place the signs anywhere on the respective lot. I believe this is not to the benefit of the Township and its desire to preserve and/or enhance it community character. Draft Sec. 16.3(A)4 presents a more focused set of exempted signs but also clearly states that the exemption applies only to the normally required permit application – exempted signs must still comply with the standards of the Article regarding sign area, height, etc.

b. Draft Sec. 16.3(E) identifies prohibited signs and includes the substantive provisions of the current Sec. 1517(3), but also expands the scope of prohibited signs to include projecting signs, roof signs, banners, and signs no longer applicable.

Section 16.4 addresses nonconforming signs – a matter about which the current Ordinance is silent or otherwise vague.

Section 16.5 refers the reader to Table 16.5-1, which presents, for each district, authorized signs in providing information pertaining to the use of the lot, business or other entities occupying the lot, products and/or services available on the lot, and similar information pertaining to the use of the lot. The table addresses sign standards regarding sign type, number, area, height and setbacks.

a. The table carries forward the same sign standards for Residential Districts as the current Ordinance.

b. In regard to the C-1 District, draft Table 16.5-1 bases the allowable sign area for freestanding and monument signs according to a formula – 1 sq. ft. of sign area for each 1' of building height or length generally oriented to the road, whichever is greater, but also establishes maximum sign area limits. Similarly, the draft Table links permissible wall sign areas to an area not exceeding 10% of the building wall area, and also establishes maximum sign area limits.

   These formulas are in contrast to the current Ordinance, which merely identifies "across-the-board" maximum sign area standards. The use of formulas such as those referenced above better assures that the size of a sign will be "scaled" to the particular building. This approach is more effective in protecting/enhancing community character and it encourages a greater sense of equity among businesses (versus a small building being able to erect as large of a sign as a far larger building, as permitted under the current Ordinance).

c. Draft Table 16.5-1 carries forward the same maximum sign area standards for the C-1 District as the current Ordinance except that the current Ordinance's maximum C-1 District wall sign area of 30 sq. ft. has been increased to 32 sq. ft., to more closely coincide with common construction dimensions such as 8' by 4' wood panels/plywood).

d. Draft Table 16.5-1 carries forward the same maximum sign area standards for the C-2, I-1 and I-2 Districts as the current Ordinance except that:

   - The current Ordinance's maximum wall sign area of 40 sq. ft. has been increased to 64 sq. ft., in recognition of the anticipated larger building sizes in these districts.
   - The current Ordinance's maximum freestanding sign area of 100 sq. ft. has been decreased to 32 sq. ft. In recognition of the low-profile commercial development envisioned for Lincoln Township and the desired character of the community, I question the appropriateness of permitting and/or needing freestanding signs in excess of 32 sq. ft.

e. While I carried forward the current Ordnance's 5' front yard setback standard for all freestanding and monument signs in all districts, I recommend officials consider increasing the setback to 10' in the Residential Districts and the C-1 District, 'and 15' – 25' in the C-2 and Industrial Districts. Greater setbacks will have a more positive impact on the township's character, particularly along road corridors, without having a substantial impact on sign visibility and advertizing interests.

f. While I carried forward the current Ordnance's 12' maximum sign height for freestanding signs in the C-1 District, and 16' in the C-2 and Industrial Districts, I recommend these maximum heights be reduced to 8' in the C-1 District and 10' in the C-2 and Industrial Districts. Again, these lesser heights will have a more positive impact on the township's character without having a substantial impact on sign visibility and advertizing interests.

g. Draft Table 16.5-1 is followed by several important provisions, most particularly in regard to the specialized signage for "business centers" characterized by multiple buildings or tenants. This is a matter about which the current Ordinance is silent or otherwise vague.

Section 16.6 identifies signs permitted in ALL districts and is far more comprehensive than the current Ordinance. In addition, the current Ordinance establishes height, area and setback standards for such signs – a matter about which the current Ordinance is silent or otherwise vague. For instance, the current Sec. 1517 does not expressly authorize construction signs (project architects/engineers), farm market signs, trespassing signs, grand opening signs, and seasonal celebration signs. The signs authorized under this Section are typically more "minor" in character. This section does NOT apply to wall and freestanding signs in association with the identification of a business, public facility, special land use, and other principal uses of a lot (typically). These more "major" signs are addressed in Section 16.5.

a. Unlike the current Ordinance, Sec. 16.6 establishes sign area standards for political signs. As the First Amendment grants persons the right to express an idea irrespective of whether it pertains to an upcoming public vote, the township may find it desirable to include such standards to address signs unrelated to a public vote and which may be displayed year-round.

b. Unlike the current Ordinance, Sec. 16.6 does not grant complete waivers exclusively to community service group signs and memorial signs. Such a waiver grants special "free speech" rights that are not similarly granted to all other uses including commercial establishments. Such a waiver will not likely withstand a legal challenge on the basis of free speech under the First Amendment. Only in limited circumstances can a municipality grant special privileges for signage based on the content of the sign.

Article 18: Standards and Regulations for Specific Land Uses

Draft Article 18 presents site development requirements for specific uses. The current Zoning Ordinance presents standards for specific uses in Sec. 1400. Draft Article 18 is far more detailed and comprehensive.

Like Sec. 1400 of the current Ordinance, draft Article 18 is intended to better ensure that the potential negative impacts of certain land uses are minimized including in regard to adjacent properties and the township as a whole. Most modern zoning ordinances include some sort of section like Article 18 though the specific content, scope of standards, and level of detail may vary considerably.

Officials may find that the added detail and scope of provisions in draft Article 18 (compared to the current Ordinance) is not desired, and may prefer to remove significant portions of draft Article 18 on the basis that the provisions may be perceived as unnecessary, overly restrictive, or unreasonably increase the bulk of the Ordinance. On the other hand, the provisions of Article 18 (with or without revisions) will enable officials to treat similar uses in a more consistent fashion, encourage consistent decision-making, and minimize negative impacts of new development.

Draft Section 18.1(B) clarifies that the site development standards of Table 3-4 of Article 3 shall apply except where different standards are set forth in Article 18.

Draft Section 18.2 addresses airports, a matter about which the current Ordinance is silent.

Draft Section 18.3 addresses bed and breakfasts. The provisions are substantively similar to those of Sec. 1404 of the current Ordinance except as follows:

- The draft provisions do not carry over the current requirement that no exterior modifications are permitted but, rather, permits modifications if the single family dwelling appearance is preserved.
- The draft provisions do not carry over the current requirement that sleeping and bath areas cannot occupy more than 30% of the dwelling's floor area. Such a requirement is not practical, given that within a typical dwelling, bedrooms and bath areas occupy approximately 50% of the floor area. In addition, if the bed and breakfast preserves the dwelling's single family dwelling appearance, why is this limitation necessary?
- The draft provisions address matters about which the current provisions are silent, including: prohibition in subdivisions; 1,000' separation distances between establishments; prohibition of meals to non-guests; prohibition of receptions and similar events unless expressly approved as part of the special land use approval; maximum of six bedrooms; minimum of one bathroom per two bedrooms, minimum bedroom size, limited sales area, and minimum setbacks for parking.

Draft Section 18.4 addresses private campgrounds, and includes a broader scope of provisions than Sec. 1405 of the current Ordnance. Existing Sec. 1405 only requires that a campground be 10 acres in area and have access to a road. Draft Sec. 18.4 also addresses such matters as a minimum lot width, special setbacks and lot coverage provisions, permanent dwellings on site, minimum size of camp sites and minimum open space areas, retail sales/convenience stores, and camp site delineation.

Draft Section 18.5 addresses commercial stables and generally corresponds to Sec. 1423 of the current Ordinance. Draft Sec. 18.5 introduces some additional provisions including minimum 330' lot width, special setbacks for public viewing areas, and required vegetative buffers around water bodies.

Draft Section 18.6 addresses convalescent and nursing homes. Sec. 1407 of the current Ordinance addresses the same matter and merely requires compliance with state regulations – something the draft Ordinance already requires of all uses. Draft Sec. 18.5 also requires that the lot have frontage on a paved primary road and establishes minimum open space requirements.

Draft Section 18.7 addresses day care centers – a matter about which the current Ordinance is silent.

Draft Section 18.8 addresses group home day care facilities. Sec. 1406 of the current Ordinance merely requires compliance with state regulations – something the draft Ordinance already requires of all uses. Draft Sec. 18.8 also addresses other matters, some of which are excerpts from the Zoning Enabling Act including separation distances.

Draft Section 18.9 addresses extraction operations.

- As I noted in a previous submittal, the Michigan Zoning Enabling Act (MZEA) was amended by PA 113 of 2011 (effective July 20, 2011) in a very significant and far reaching manner. The MZEA was amended to provide, in part, that a zoning ordinance cannot prevent the extraction, by mining, of valuable natural resources from any property (any district) unless "very serious consequences" would result from such extraction. Tables 3-2 and 3-3 of Article 3 permit extraction operations as a special land use in all districts and Section 18.9(F) addresses this "no very serious consequences" issues (based on the wording of PA 113).
- Draft Section 18.9 is far more comprehensive than the corresponding Sec. 1508 of the current Ordinance. The draft Ordinance incorporates the substantive provisions of Sec. 1508 and introduces provisions addressing additional application information such as the location of nearby buildings, fencing plans, proposed side slopes, a storm water management plan, and a detailed reclamation plan; additional site development standards regarding minimum lot area (20 acres), special setbacks, rumble strips and road cleanliness, prohibition of ponding, hours of operation, and finished grades; additional provisions addressing abandonment and termination of an extraction operation; and the introduction of time limitations on an extraction permit.

Draft Section 18.10 addresses group home foster care facilities – a matter about which the current Ordinance is silent.

Draft Section 18.11 addresses golf courses and country clubs. The current Ordinance merely provides that the minimum lot area must be 40 acres and buildings must be set back a minimum of 75' from lot lines (Sec. 1411). Draft Sec. 18.11 presents a considerably wider scope of provisions addressing such matters as architectural design, fairways and driving range design, buffer areas around water bodies, storage of hazardous materials, and hydrogeological studies. The minimum required 40-acre lot area was reduced to 20 acres in recognition that the ultimate size of such a facility is dependent on the particular facilities and services that are offered.

Draft Section 18.12 addresses hospitals – a matter about which the current Ordinance is silent.

Draft Section 18.13 addresses junkyards and most closely corresponds to Sec. 1414 of the current Ordinance. Draft Section 18.13 carries forward the substantive aspects of Sec. 1414 and also introduces an expanded set of provisions addressing matters about which the current Ordinance is silent such as the prohibition of outdoor burning, prohibition of dust, registration of toxic materials, the draining of fuels and oils, and lot frontage on a paved primary road.

Draft Section 18.14 addresses kennels and most closely corresponds to Sec. 1415 of the current Ordinance.

- The current requirement for one additional acre in lot area for each 10 dogs above and beyond the first ten dogs has not been carried over into draft Sec. 18.14. This requirement seems excessive, in recognition that most kennels maintain the dogs in comparatively small indoor/outdoor stalls/runs, along with one or more "common areas" into which a limited number of dogs are permitted access at a time. Provided all setbacks and other standards are met, I question the value of the "one acre per ten dogs" requirement.
- Draft Section 18.14 carries forward the remaining provisions of the current Ordinance and introduces new provisions addressing sanitary conditions, licensing of animals, kennel building design (heat, ventilation, etc.), confinement, hours for outdoor runs, and minimum of lot width (300').
- The current Ordinance requires a separate and independent septic system for a kennel and specifies standards regarding the same. Draft Sec. 18.14 provides that such a separate system must be installed unless the County Health Department approves the use of an existing system, and that the location, capacity and sizing of a separate and independent system shall be in accordance with Department rules and/or recommendations.

Draft Section 18.15 addresses mini-storage facilities – a matter about which the current Ordinance is silent.

Draft Section 18.16 addresses motels and hotels – a matter about which the current Ordinance is silent.

Draft Section 18.17 addresses multiple family developments – a matter about which the current Ordinance is silent except for the delineation of minimum floor areas based on the number of bedrooms (Sec. 1301(3)). These standards have been carried over into draft Sec. 18.17 and draft Sec. 18.17 introduces new provisions addressing building heights, setbacks from parking lots and other buildings, minimum open space requirements, and access drive standards.

Draft Section 18.18 addresses open air businesses and incorporates the substantive provisions of Sec. 1419 of the current Ordinance. Draft Sec. 18.18 introduces new provisions addressing the requirement for an on-site building, special provisions for vehicle sales, and the prohibition of outdoor broadcasting of voice or music.

Draft Section 18.19 addresses Open Space Preservation Communities. The Zoning Enabling Act requires, generally, that in any district that limits residential densities to two dwellings or less per acre, the landowner must be given the opportunity to attain the same number of lots relying on lesser minimum lot areas than normally required provided the landowner sets aside a minimum of 50% of the parcel in a permanent open space status and adequate provisions are in place for potable water and sewage disposal. Section 18.19 addresses this matter. Subsection (B)(2) permits a 25% increase in the number of lots/dwellings as a means to encourage this form of development, which is commonly viewed as more effective in preserving substantive open space, special environmental resources and rural character. The current Ordinance (Sec. 1420) only provides that land may developed in this fashion as provided by law, but is silent on matters regarding application requirements, review procedures, and site development standards.

Draft Section 18.20 addresses private landing strips – a matter about which the current Ordinance is silent.

Draft Section 18.21 addresses sexually oriented businesses and generally corresponds to Sec. 1401 of the current Ordinance. Draft Section 18.21 carries forward the substantive aspects of Sec. 1401.

- Draft Sec. 18.21 introduces an expanded set of provisions addressing matters about which the current Ordinance is silent such as minimum indoor lighting requirements, the requirement for a floor manager's station, and requirements regarding facilities that provide live entertainment including in regard to dressing rooms and stage performances.
- Although I carried forward the current Sec. 1401 requirement for 1,500' separation distances from parks, churches, schools and other sexually oriented businesses, I have some concern as to the township's ability to successfully defend a challenge to this standard. While 500' and 750' standards are common and have been supported in a court of law, and in some cases I have seen a standard of 1,000', a court may find the 1,500' standard to be excessive.

Draft Section 18.22 addresses shooting ranges, hunt clubs and similar uses – matters about which the current Ordinance is silent.

Draft Section 18.23 addresses Solar Energy Systems (SES) – matters about which the current Ordinance is silent. The principal issues surrounding the regulation of SES pertain to setbacks, height, glare, and buffering. It is these matters that the draft provisions address. The SES provisions provide for three SES classifications. *Small SES* serve a dwelling or business and are subject to Zoning Administrator approval. *Medium SES* serve on-site as well as off-site customers and are subject to site plan/Planning Commission approval. *Large SES* are primarily utility-grade systems serving off-site customers and are classified as special land uses.

Draft Section 18.24 addresses car wash facilities and generally corresponds to Sec. 1403 of the current Ordinance.

- Draft Sec, 18.24 does not carry forward the current Ordinance's requirements that all car wash facilities must be within a building, as the most common forms are open stalls and I assume the township is not purposefully trying to prohibit such facilities.
- Draft Sec. 18.24 introduces new provisions regarding access from a paved road, trash receptacles, and drainage from washing bays.

Draft Section 18.25 addresses vehicle repair and service stations and generally corresponds to Sec. 1410 of the current Ordinance. Draft Sec. 18.24 introduces new provisions regarding setbacks for canopies, identification of hazardous materials on site, canopy lighting, and required access from a paved primary road.

Draft Section 18.26 addresses wind energy turbine (WET) systems – a matter about which the current Ordinance is silent. The regulation of WETs is a complicated matter. Draft Sec. 18.26 establishes three "levels" of WETs. Small WETs are those that have a capacity not exceeding 30 kilowatts, and are reviewed and approved by the Zoning Administrator. A Medium WET has a capacity of 31 to 250 kilowatts, and a Large WET has a capacity in excess of 250 kilowatts. Medium and Large WETs are intended to be classified as special land uses and limited to the M-2 and RR Districts. For references purposes, a typical household would require a turbine of a 2 to 10 kilowatt capacity to meet all of its electrical needs, and the low-end capacity of utility-grade turbines generally ranges from 100 to 250 kilowatts.

Draft Section 18.27 addresses wireless communication facilities (cell towers). This multiple page set of provisions is far more extensive then Sec. 1424 of the current Ordinance, which is about four sentences long. Draft Sec. 18.27 is far more detailed and comprehensive.

- As I noted in a previous submittal, the Zoning Enabling Act (ZEA) was amended by Public Act 143 of 2012 (PA 143, effective May 24, 2012) to establish provisions regarding the local regulation of communication tower facilities. PA 143 provides, in summary, that wireless communications equipment must not be subject to special land use approval if the communications equipment is collocated on a legal existing support structure or in an existing equipment compound. Exceptions that enable such communications equipment to be subject to special land use approval are in the cases where the equipment increases the existing tower height more than 10% or 20' (the greater of the two), increases the width of the wireless communications support structure by more than the minimum necessary to permit collocation, or increases the area of the existing equipment compound to more than 2,500 square feet.
- Draft Section 18.27 differentiates between Class 1 and Class 2 wireless communication facilities – the Class 2 facilities principally being new towers and subject to special land use approval. The provisions of Section 18.27(B) and (C)(1) regarding review time lines and fees are largely excerpts from PA 143.

Please do not hesitate to contact me if you have any questions.

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Article 12
OFF-STREET PARKING and LOADING

Section 12.1 Purpose

It is the purpose of this Article to establish standards and requirements to ensure that appropriate parking and circulation shall be adequately provided and maintained on each lot in every District for the off-street parking of motor vehicles as may be necessary, including in association with employees and patrons, ingress, egress, and the receiving and distribution of goods. It is the purpose of this Article to prevent hazards and undue interferences among and between vehicles and pedestrians, and adjacent land uses, and protect the public health, safety and welfare.

Section 12.2 General Requirements

A. Fractional Space: When units of measurement determining the number of required parking spaces result in a fractional space, any fraction to and including one-half (1/2) shall be disregarded and fractions over one-half (1/2) shall require one (1) parking space.

B. Requirements for a Use Not Mentioned: In the case of a use not specifically mentioned, the requirements of off-street parking for a use which is mentioned and which is most similar to the use not listed shall apply. This determination shall be made during site plan review proceedings.

C. Use of Off-Street Parking Areas: Off-street parking areas shall be reserved for the parking of vehicles used to service the establishment to which it is accessory and by its patrons. No commercial repair work, storage, selling or any other activity shall be conducted in an off-street parking area except as may be authorized as part of site plan approval proceedings or other approval under this Ordinance.

D. Building Additions or Other Increases in Floor Area: Whenever a use requiring off-street parking is increased in area, or when interior building modifications result in an increase in capacity for any premise use, additional parking shall be provided and maintained in the proper ratio to the increased floor area or capacity according to Section 12.04.

E. Decrease in Parking Areas: No off-street parking area that exists on the date of adoption of this Ordinance or which is provided subsequent thereto, for the purpose of complying with this Ordinance, shall thereafter be relinquished or reduced in any manner below the requirements established by this Ordinance unless additional parking area or space is provided sufficient to meet the requirements of this Article.

F. Location of Parking Lots: All off-street parking areas shall be located on the same lot, or on the adjacent premises on the same side of the road and in the same District as the use they are intended to serve, but in no case shall such off-street parking areas be located more than 300 feet from the uses the parking areas are intended to served, as measured from the nearest point of the building to the nearest point of the off-street parking lot. The site plan approving body may approve a greater separation distance upon a finding by the site plan approving body that, within the context of the specific use and anticipated vehicle and pedestrian patterns, no practical alternative is available and a greater distance shall not encourage excessive traffic in nearby residential areas or otherwise undermine public safety for pedestrians or motorists.

G. Joint Use of Parking Lots: The joint use of parking facilities by two or more uses may be granted during site plan review proceedings whenever such joint use is practical and satisfactory to each of the uses intended to be served, and when all requirements of this Article are met.

1. Computing Capacities: In computing capacities of any joint use, the total space requirement shall be the sum of the individual requirements that will occur at the same time. If space requirements for individual uses occur at distinctly different times, the total of such off-street parking facilities required for joint or collective use may be reduced below the sum total of the individual space requirements by the site plan approving body. Such reduction shall not exceed thirty percent (30%).
2. Record of Agreement: A copy of a proposed agreement between joint users, when the joint uses are located on separate lots, shall be filed with the application for a zoning permit and a copy shall be recorded with the County Register of Deeds upon approval of the application. The agreement shall include a guarantee for continued use of the parking facility by each party and a provision requiring written approval by all joint users and the Township.

H. Barrier-Free Parking Spaces: Barrier-free parking spaces shall be provided in accordance with the most current standards and rules of the Michigan Department of Labor, Construction Code Commission, Barrier Free Design Division. Such spaces shall be placed in the most convenient locations to facilitate access into a building. Such spaces shall be clearly identified by both adequate paint striping and wall or post signs.

I. Zoning Permit Required: No parking lot shall be constructed prior to the issuance of a zoning permit by the Zoning Administrator for such parking lot, upon the submittal of a plot plan or site plan as applicable.

Section 12.3 Site Development Requirements for Off-Street Parking

All off-street parking areas, except for single family and two family dwellings, shall be designed, constructed and maintained in accordance with the following standards and requirements.

A. Marking and Designation: Parking areas shall be so designed and marked as to provide for orderly and safe movement and parking of vehicles.

B. Access and Driveways:

1. Adequate ingress and egress to the parking area by means of clearly limited and defined drives shall be provided. A driveway shall not be used for off-street parking except where specifically designed to accommodate such parking and approved during site plan review proceedings.
2. Two-way drives for ingress and egress to a parking area shall be not less than twenty-four (24) feet wide and no greater than thirty-six (36) feet wide, except upon a determination by the site plan approving body that a greater width is necessary to adequately accommodate the anticipated traffic levels and/or type of vehicle traffic. All turning radii shall comfortably accommodate vehicle turning patterns.
3. Each entrance to and exit from an off-street parking area shall be at least twenty-five (25) feet from any lot line, fifty (50) from another driveway, and seventy-five (75) feet from an intersection. The site plan approving body may modify these standards as applied to a specific site plan based on review comments by the County Road Commission.
4. Ingress and egress to a parking lot serving a non-residential use shall not cross land on a separate lot in a Residential District.

C. Surface: All required off-street parking areas intended to accommodate four (4) or more spaces, including aisles and driveways, shall be paved with concrete, bituminous asphalt or similar material approved by the site plan approving body including materials specifically designed to enhance runoff infiltration. The site plan approving body may waive this requirement in the case of a lot outside of a Commercial or Industrial District upon its determination that such paving is not in character with the surrounding and intended land use pattern, the lack of paving will not cause a dust or noise nuisance to current and future residents, and the nature of the use generates comparatively low traffic volumes on a day-to-day basis. Paved parking spaces shall be marked with striping.

D. Drainage: All required off-street parking areas shall provide adequate surface drainage facilities to collect and properly manage storm water runoff. Off-street parking areas shall be drained so as to prevent increased rates of runoff onto abutting properties and public roads.

E. Location/Setback:

1. Side and Rear Yard Setbacks: Off-street parking areas shall comply with the required side and rear yard district setbacks for the principal building, except that the minimum setback for a lot in a Commercial District shall be ten (10) feet where the yard abuts a lot in a Commercial or Industrial District and twenty (20) feet in all other cases.
2. Front Yard Setbacks: Off-street parking areas shall comply with the required front yard setback for the principal building in the District but in no case shall the setback be less than twenty (20) feet.
3. Building Setback: Off-street parking areas shall be designed and arranged to prohibit a parked vehicle from being closer than five (5) feet to a building, including any bumper overhang.

F. Lighting: Required off-street parking areas shall be provided adequate light levels to enable pedestrians to safely move through such areas during hours when the use is operational. All lighting shall comply with Section 20.22.

G. Parking Spaces and Maneuvering Lanes: Each parking space within an off-street parking area shall be provided with adequate access by means of maneuvering lanes. The layout of off-street parking areas shall comply with the following minimum standards:

Parking Pattern	Maneuvering Lane Width		Parking Space Width	Parking Space Length
	One-Way	Two-Way		
0° (Parallel)	12 ft.	24 ft.	8 ft.	22 ft.
30°- to 53°	13 ft.	22 ft.	9 ft.	18 ft.
54°- to 74°	18 ft.	22 ft.	9 ft.	18 ft.
75°- to 90°	24 ft.	24 ft.	9 ft.	18 ft.

H. Service Drives and Connections to Adjacent Parking Areas: To minimize traffic hazards and congestion and protect the public health, safety and welfare through appropriate access management, the Planning Commission may require the development of a lot in a Commercial or Industrial District to include one or both of the following improvements, where practical and feasible:

1. Off-street parking areas shall provide for direct vehicular access to existing or potential off-street parking areas on adjacent lots to minimize the necessity for additional curb cuts onto public roads to gain access to such adjacent lots or businesses.
2. Off-street parking areas shall include a service drive across the front or rear of the respective lot to collect traffic from parking areas and funnel the traffic to one or more curb cuts along a public road, so as to reduce the number of curb cuts that would otherwise be required if each parking area accessed the public road. Such service drives shall be designed to afford connections to existing or potential service drives on adjacent lots.

I. Number of Spaces: See Section 12.4.

J. Landscaping and Screening: See Article 13, including provisions regarding parking lot islands.

Section 12.4 Parking Space Requirements

A. Compliance with Required Number of Parking Spaces:

1. Required Spaces: The minimum number of off-street parking spaces to be provided on each lot shall be as specified in this Section according to land use type. Where a lot is comprised of multiple uses, such as in the case of a motel with a restaurant or a building comprised of office and retail tenants, the total number of spaces to be provided shall be the sum of all of the individual uses except as may be otherwise provided by the Article.
2. Waivers: Where it can be demonstrated according to the discretion of the site plan approving body that the parking requirements of this Section would result in more parking spaces than are necessary for the parking needs of a particular use, the site plan approving body may approve a parking plan with fewer spaces than required by this Section according to the following requirements:
   a. The applicant shall provide written evidence to the site plan approving body that the parking proposed on the site for the specific use is sufficient to meet the parking needs of those who will patronize the use as well as the parking needs for employees during the largest working shift. Such evidence may consist of: arrangements for nearby shared parking, evidence that the proposed use will also be patronized by pedestrians, evidence from the parking history of the proposed use or a use similar to the proposed use at other locations, or that there is sufficient designated parking within the road right-of-way and such designated parking is authorized by the governmental entity having jurisdiction over the road right-of-way and the use of such right-of-way will not result in a visible increase in traffic congestion or traffic hazards.
      1) In no case shall the site plan approving body approve a reduction in the number of parking spaces of greater than thirty percent (30%).
   b. If a plan is approved to allow fewer parking spaces than required by this Section, such parking plan shall only apply to the stated use. All other uses shall comply with the requirements of this Section.
   c. The site plan approving body may require a reserved parking area on the lot for possible future use, and the site plan approving body may subsequently require the applicant to construct such parking spaces on the lot if the site plan approving body finds that the reduced number of parking spaces is not adequate to meet the parking needs of the use and public safety and welfare is at risk. Upon such a determination, the applicant shall convert the reserve parking area into available parking spaces, meeting all requirements of this Article, within six (6) months of such determination. The approved site plan shall clearly identify the location of this reserve parking area including the

configuration of potential parking spaces and aisles, and no buildings, structures, or similar permanent-type improvements shall be established in the reserve parking area.

B. Residential Uses:

1. One and Two Family Dwellings: Two (2) spaces for each single family dwelling unit.
2. Multiple Family Dwellings: Two (2) spaces for each multiple family dwelling unit plus one space per five (5) units for guest parking, and one (1) additional parking space shall be provided for each employee of the largest work shift.
3. Assisted Living Facilities and Group Homes (adult foster care): One (1) space for every three (3) residents of the home, and one (1) additional parking space shall be provided for each employee of the largest work shift.
4. Senior Independent Housing: One (1) space per living unit.

C. Commercial Uses: In addition to the parking spaces required below, an additional one (1) parking space shall be provided for each employee of the largest work shift.

1. Lodging
   a. **Bed and Breakfast:** One (1) space for each rental room.
   b. **Motels and Hotels:** One (1) space for each sleeping unit.
2. Recreation
   a. **Athletic Clubs, Physical Exercise Establishments, Health Studios, Self-Defense Clubs:** One (1) space per three (3) patrons based on the occupancy load established by the State Fire Marshall.
   b. **Bowling Alleys:** Three (3) spaces for each alley.
   c. **Miniature Golf Courses:** Two (2) spaces for each hole.
   d. **Par 3 Golf Courses:** Three (3) spaces for each hole.
   e. **Par 4 or Greater Golf Courses:** Four (4) spaces for each hole.
   f. **Roller Skating Rinks and Pool and Billiard Rooms:** One (1) space for every three (3) persons allowed based on the maximum capacity of the facility as determined by the State Fire Marshall.
3. Care Facilities
   a. **Hospital:** One (1) space for each two (2) beds.
   b. **Medical Clinics:** Two (2) spaces for each examination or treatment room plus one (1) space for each one-hundred (100) sq. ft. of waiting room area.
   c. **Nursing Facility, Convalescent Home, and Home for the Aged:** One (1) space for each three (3) beds.
4. Retail Sales
   a. **Automobile or Machinery Sales:** One (1) space for each 200 sq. ft. of usable floor area. Spaces used for storage of vehicles for sale, and vehicle service and repair, shall not be used to meet parking requirements.
   b. **Clothing, Furniture, Appliance, Hardware, Automobile, and Machinery Sales.** One (1) space per eight-hundred (800) square feet of usable floor area.
   c. **Service Stations:** Two (2) spaces for each repair and service stall and one (1) space for every two-hundred (200) sq. ft. of usable floor area exclusive of stall areas. Service stalls and gas pump stations shall not be considered a parking space.
   d. **Restaurant, Drive-Through (with indoor eating facilities):** One (1) space for every three (3) seats and fifteen (15) sq. ft. of floor area devoted to placing orders, plus sufficient area for eight (8) stacking spaces for drive-through windows.
   e. **Restaurant, Drive Through (no indoor eating facilities):** One (1) space for every 15 sq. ft. of usable floor area plus sufficient area for eight (8) stacking spaces for drive-through windows.
   f. **Restaurant, Carry-Out (no indoor eating facilities):** One (1) space for every fifteen (15) sq. ft. of usable floor area, provided a minimum of five (5) spaces are provided.
   g. **Taverns, Bars, and Other Restaurants:** One (1) space for every three (3) seats provided plus one (1) additional space for each one-hundred (100) sq. ft. of standing room available to customers.
   h. **Supermarket, Convenience Store, Self-Service Food Store:** One (1) space for every three-hundred (300) sq. ft. of useable floor area.
   i. **Retail Stores and Facilities (not otherwise specified above):** One (1) space for every one-hundred fifty (150) sq. ft. of usable floor area.

5. Offices and Services Not Addressed Above
   a. **Banks and Financial Institutions:** One (1) parking space for every 200 sq. ft. of usable floor area plus sufficient area for five (5) stacking spaces for the first drive-through window and two (2) spaces for each additional window.
   b. **Barber Shops and Beauty Parlors:** Two (2) spaces for each chair and other treatment station.
   c. **Car Wash, Automatic:** For those systems that do not operate as a continuous system accommodating multiple vehicles at a single time, reserve parking or storage for eighty percent (80%) of the manufacture's hourly rated capacity for the system in use shall be required. For those systems that operate as a continuous system accommodating multiple vehicles at a single time, reserve parking or storage for fifty percent (50%) percent of the manufacture's hourly rated capacity for the system in use shall be required. The capacity of the awaiting lines shall be determined by dividing the awaiting wash line length by twenty (20) feet.
   d. **Car Wash, Self-Service:** Awaiting wash line(s) of a length capable of accommodating up to three (3) times the maximum number of vehicles able to be undergoing some phase of washing at the same time. The capacity of the awaiting lines shall be determined by dividing the awaiting wash line length by twenty (20) feet.
   e. **Day Care Centers, Child Care Center, Nursery School, School of Special Education:** One (1) parking space for each 350 sq. ft. of usable floor space or one (1) space for each seven enrolled persons, whichever is greater, and a drop-off area capable of accommodating six (6) vehicles.
   f. **Funeral Homes and Mortuaries:** One (1) space for every fifty (50) sq. ft. of floor area of chapels and assembly rooms.
   g. **Kennels:** One (1) space for each five (5) animals of the facility's capacity.
   h. **Laundromat:** One (1) space for every three (3) washing or drying machines.
   i. **Offices and Professional:** One (1) space for every two hundred (200) sq. ft. of usable floor area.
   j. **Personal Service Establishments (not otherwise specified above):** One (1) space per four hundred (400) feet of gross floor area.
   k. **Vehicle Service/Repair:** Two (2) spaces for each service bay, but not less than six (6) spaces.

D. Industrial Uses: In addition to the parking spaces required below, an additional one (1) parking space shall be provided for each employee of the largest work shift.

1. **Industrial or Manufacturing Establishments:** One (1) space for every two-thousand (2,000) sq. ft. of floor area.
2. **Warehouses, Wholesale Facilities:** One (1) space for every one-thousand (1,000) sq. ft. of floor area.

E. Other Uses: In addition to the parking spaces required below, an additional one (1) parking space shall be provided for each employee of the largest work shift.

1. **Religious Institutions:** One (1) space for each four (4) seats or six (6) linear feet of pew or bench seating in the main unit of worship.
2. **Non-School Auditorium, Theater, Assembly Hall:** One (1) space for each four (4) seats or five (5) linear feet of bench seating, or one (1) space for each three (3) persons based on the occupancy load as established by the State Fire Marshall, whichever is greater.
3. **Private Civic Club or Lodge:** One (1) space for each three (3) members, based upon the load capacity as determined by the State Fire Marshall.
4. **Elementary and Middle Schools:** One (1) space for each fifteen (15) students (based on the capacity of the facility as determined by the Fire Marshall), plus one (1) space for every four (4) seats where the school contains an auditorium, stadium and/or gym.
5. **High Schools:** One (1) space for each ten (10) students (based on the capacity of the facility as determined by the Fire Marshall), plus one (1) space for every four (4) seats where the school contains an auditorium, stadium and/or gym.
6. **Libraries and Museums:** One (1) space for every four hundred (400) sq. ft. of floor area.
7. **Outdoor Theaters and Other Outdoor Entertainment Facilities:** One (1) space for every four fixed seats or five (5) linear feet of bench seating, and one (1) additional space for one hundred (100) sq. ft. available to accommodate additional attendees not otherwise restricted to a fixed seating area.

Section 12.5 Loading and Unloading Space Requirements

A. Location: Loading space required under this Section shall be provided on the same lot that it is intended to serve and shall be an area in addition to the off-street parking space required under Section 12.4.

B. Space and Material Requirements: There shall be provided an adequate space for standing, loading, and unloading services, of a concrete, bituminous asphalt or similar surface material approved by the site plan approving body including materials specifically designed to enhance runoff infiltration. Each space shall be a minimum of twelve (12) feet in width and twenty-five (25) feet in length, and fourteen (14) feet in height, open or enclosed. The site plan approval body may require a greater space length where necessitated by the anticipated type of truck traffic. The number of spaces shall be provided as follows:

Gross Floor Area	Spaces Required
Up to 5,000 sq. ft. of gross floor area:	1 space, if determined necessary during site plan review.
5,001 to 20,000 sq. ft. of gross floor area:	1 space.
20,001 to 100,000 sq. ft. of gross floor area:	1 space, plus 1 space per each 20,000 sq. ft. of gross floor area, or fraction thereof, in excess of the first 20,000 sq. ft..
100,001 or more sq. ft. of gross floor area:	5 spaces, plus 1 space per each 100,000 sq. ft. of gross floor area, or fraction thereof, in excess of the first 200,000 sq. ft.

C. Access: Access to a truck standing, loading, and unloading space shall be provided directly from a public road or alley and such space shall be so arranged to provide sufficient off-street maneuvering as well as adequate ingress and egress to and from the road or alley.

D. Screening: Where the site plan approving body determines that the landscaping/screening requirements of Article 13 do not adequately screen loading/unloading areas from adjacent pubic roads, from adjacent residential property and/or from an adjacent lot within a different District, the site plan approving body may require additional screening measures to minimize visual and/or noise impacts

E. Location:

1. Designated loading-unloading spaces shall not be located in any front yard.
2. Loading-unloading spaces shall not be located in a required side or rear yard setback except where such yard adjoins a Commercial or Industrial District, but in no case shall such loading-unloading area be located within ten (10) feet of the lot line.
3. In no case shall loading-unloading spaces be located closer than twenty-five (25) feet to a lot used principally for residential purposes.

End of Article 12

Article 13
LANDSCAPING and SCREENING

Section 13.1 Purpose

It is the purpose of this Article is to establish standards and requirements to assure adequate landscaping and screening so that land uses minimize noise, air, and visual pollution; improve the appearance of off-street parking and other vehicular use areas; assure adequate buffering between differing uses; support the desired community character along property adjoining public rights-of-way; prevent soil erosion and soil depletion; and protect and preserve the appearance, character, and value of the community as a whole.

Section 13.2 Uses Subject to This Article

The requirements of this Article shall apply to those uses for which site plan approval is required under Article 6, Site Plan Review, and any other use so specified in this Ordinance. In the case of the expansion of a use that is subject to site plan approval, where the expansion exceeds five-hundred (500) sq. ft. or the additional of five (5) or more parking spaces, the standards of this Article shall be applied to the area of the lot subject to such modifications, according to the reasonable discretion of the site plan approving body. This Article shall not apply to single family and two-family dwellings.

Section 13.3 Landscape Plan Required

A. A landscape plan is required to be submitted as part of a site plan (see Article 6). The plan shall be prepared at a minimum scale of 1" = 100' and shall identify all buffer areas and other areas intended to be grassed or otherwise vegetated including planting beds. The landscape plan shall include, but not necessarily be limited to, the clear delineation of the following:

1. Proposed plant location, spacing, size, common and botanical name, and growth habit of each plant type proposed.
2. Identification of grass and other proposed ground cover, including common and botanical name.
3. Existing and proposed contours.
4. Planting and staking details in either text or drawing form to ensure proper installation of proposed plant materials, including significant construction details to resolve specific site conditions such as tree wells to preserve existing trees.
5. Identification of existing trees and vegetative cover to be preserved.

Section 13.4 Buffer/Landscape Areas

A. Side and Rear Yard Buffer/Landscape Areas: A buffer/landscape area shall be established along all side and rear lot lines. The buffer area shall not be used for off-street parking, storage or used in any other manner except for the purposes of a buffer.

1. The buffer/landscapearea shall extend from the respective lot line for a minimum width equal to the required setback for the principal building, except that the minimum buffer/landscapewidth for a lot in a Commercial or Industrial District shall be ten (10) feet where the yard abuts a lot in a Commercial or Industrial District and twenty (20) feet in width in all other cases.
2. The buffer/landscapearea shall be planted and maintained with evergreen trees such as spruce, pines, or firs, and deciduous trees. While such plantings need not be evenly spaced, the trees shall be provided at a rate of at least one (1) evergreen tree per forty (40) linear feet and one (1) deciduous tree per fifty (50) linear feet. At the time of their planting, evergreen trees shall be a minimum of six (6) feet in height and deciduous trees shall have a caliper of at least two and a half (2 1/2) inches, measured five (5) feet above the ground surface, and be a minimum of twelve (12) feet in height. Where a wall or fence is part of the buffer/landscape area, a minimum of fifty percent (50%) of the required plantings shall be located on the exterior side of such wall or fence.
3. The site pan approving body may require the erection of a berm, fence and/or wall where the abutting yard is in a Residential District and such measures are determined necessary to adequately mitigate negative impacts.

B. Front Yard Buffer/Landscape Areas: A buffer/landscapearea shall be established along all front lot lines including on a corner lot. The area shall not be used for off-street parking, storage or in any other manner except for the purposes of a buffer/landscape area.

1. The buffer/landscape area shall extend from the respective lot line for a minimum width equal to the setback for the principal building on the lot, except that the minimum buffer/landscape width in Commercial Districts shall be twenty (20) feet. The buffer/landscape area shall be landscaped with a minimum of one (1) tree meeting the minimum size requirements specified in Section 13.4(A)(3) above for each fifty (50) lineal feet, or portion thereof, of frontage adjoining the road right-of-way. The remainder of the front yard buffer/landscape area shall be landscaped in grass, shrubs, trees and/or other ground cover. Access ways through required buffer/landscape areas shall be permitted, but such access ways shall not be subtracted from the lineal dimension used to determine the minimum number of required trees.

Section 13.5 Parking Lot Landscaping and Screening

A. Perimeter Landscaping/Screening

1. There shall be provided a minimum of one (1) deciduous tree of at least two and a half (2 1/2) inch caliper for every eight (8) parking spaces or fifty (50) linear feet of parking lot edge, whichever is greater. Such trees shall be located within parking islands or within ten (10) feet of the edge of the parking lot. A minimum distance of three (3) feet shall be maintained between proposed tree or shrub plantings and the edge of curbing and pavement.
2. Where a parking lot contains ten (10) or more parking spaces and is within one hundred (100) feet of a Residential District, or public road, a berm, fence, wall and/or vegetative screen shall be installed to screen views to the parking area. All berms and plant material, either individually or in combination, shall be of such height and spacing to provide a minimum fifty percent (50%) screen of the parking lot border to a minimum height of three (3) feet at the time of berm and plant material installation. Shrub materials shall be of evergreen or otherwise densely-branched screening character.

B. Landscape Islands

1. When/Where Required: In the case of parking lots that have a capacity of twenty (20) or more vehicles, landscape islands shall be employed in the following manner:
   a. To prohibit a continuous row of parked cars exceeding ten (10) in number.
   b. At the terminus of a row of parked cars around which vehicles will travel to access another **parking** aisle or an egress/ingress driveway.
2. Construction Standards:
   a. Landscape islands shall be a minimum of five (5) feet in width with appropriate radii to facilitate vehicle movement around the islands.
   b. Landscape islands shall have raised curbing around their perimeter or other design feature to prohibit vehicles from encroaching into the island.

C. Refuse Container Screening: Refuse containers shall be screened from view. Screening shall consist of a minimum six (6) foot high opaque wall or fence.

Section 13.6 Additional Tree Plantings

In addition to the other landscaping and screening required by this Article, a minimum of one (1) additional tree shall be planted for each two thousand (2,000) square feet of impervious surface to be established on the lot including paved and gravel surfaces and buildings. Plantings may be uniformly spaced, clustered, and/or randomly scattered. At the time of their planting, evergreen trees shall be a minimum of six (6) feet in height and deciduous trees shall have a caliper of at least two (2) inches, measured five (5) feet above the ground surface, and be a minimum of ten (10) feet in height.

Section 13.7 Minimum Standards of Landscape Elements

A. Quality and Composition: Plant material shall be free of insects and diseases, and hardy to the climate. Plant species which are generally considered undesirable due to comparatively low disease tolerance, low wood strength and/or high wood-splitting tendencies, such as boxelder, mulberry, and willows, are prohibited unless specifically authorized by the site plan approving body based on the manner in which the plant material is to be used or located. A mixture of plant material shall be required to protect against insect and disease infestation. No synthetic plant materials such as artificial grass, shrubs, trees, or flowers shall be used to fulfill any plant material requirements.

B. Existing Trees: If existing plant material is labeled "To Remain" on site plans by the applicant or required by the site plan approval body, protective techniques such as fencing, placed at the dripline around the perimeter of the plant material, shall be indicated on the site plan. No vehicle or other construction equipment shall be parked or stored within the dripline of any plant material intended to be saved. In the event that existing healthy trees which are used to meet the minimum requirements of this Ordinance, or those labeled to remain are cut down, destroyed, damaged, or excavated at the dripline, as determined by the site plan approving body, the applicant shall replace them with trees that meet Ordinance requirements. Such replacement trees shall be planted at a rate of one (1) tree per two (2) inches of tree caliper of the tree cut down, damaged, or otherwise destroyed.

C. Berms: Berms shall be designed and landscaped to minimize erosion. Berms shall have a slope no greater than a 3:1 horizontal to-vertical ratio unless designed as part of a retaining wall.

D. Ground Cover: Grass or other living plants shall be primary ground cover in required landscaped areas.

E. Fencing and Walls: All required fencing and walls shall comply with the following:

1. General Construction: All required fencing and walls shall be constructed and maintained in a sound manner to assure long-term structural integrity and visual character, and shall be constructed of durable, weather-resistant, rustproof materials. The finished side of fencing shall face abutting properties.
2. Masonry Walls: Masonry walls shall be erected on a concrete foundation which shall have a minimum depth of forty-two (42) inches below grade, and shall be not less than four (4) inches wider than the wall to be erected. Masonry walls may be constructed with openings above thirty-two (32) inches above the ground below, provided such openings are not larger than sixty-four (64) square inches and that the openings shall be so spaced as to maintain the obscuring character required.
3. Site Plan: Site plans shall include all necessary construction details to illustrate compliance with the requirements of this Section.

Section 13.8 Installation, Maintenance and Completion

All landscaping required by this Ordinance shall be planted prior to obtaining a Certificate of Occupancy or, where the applicant can demonstrate to the Zoning Administrator that seasonal conditions prohibit the installation of the plant material prior to desired occupancy, the plant material shall be installed within six months of receipt of such Certificate. All landscaping and landscape elements shall be planted, and earth moving or grading performed, in a sound workmanlike manner and according to accepted good planting and grading procedures. All plant material shall be maintained in a healthy condition, and free of refuse and debris. All unhealthy and dead material shall be replaced within one (1) year of damage or death or the next appropriate planting period, whichever comes first.

Section 13.9 Waivers and Modifications

A. Authority to Waive or Modify Requirements: Any of the requirements of this Article may be modified through site plan review proceedings, provided the approving body makes a finding that identifies characteristics of the site, site modifications or site vicinity that would make required landscaping, buffer areas, fencing, walls, or screening unnecessary, inappropriate, or ineffective.

1. Examples: Examples of conditions that may warrant waivers and/or modifications include:
   a. The reliance on existing protected vegetated areas that serve as a screen due to their particular location and character.
   b. In the case of a large lot where only a comparatively small portion of the lot is to be developed, applying the landscaping and screening provisions to only that portion of the lot to be developed.

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End of Article 13

Article 14
ENVIRONMENTAL PROTECTION

Section 14.1 Purpose

The purpose of this Article is to promote a healthy environment as it relates to the Township's natural resources and sensitive ecosystems, and the provision of adequate sewage disposal and potable water.

Section 14.2 Natural Resources, General

A. Compliance with Local, County, State, and Federal Regulations: All land uses and construction activities shall conform to the provisions of this Ordinance and all local, county, state and federal rules and regulations including, but not limited to fire safety and emergency vehicle access requirements of the State Construction Code and State Fire Marshall; requirements of the Michigan Department of Environmental Quality including those applying to air and water quality protection, use and disturbances to wetlands, fills in or near water bodies or in flood plains, stream crossings, discharges into the air, surface or ground waters, and land, and waste disposal; regulations pertaining to the loading/unloading, transport, storage, use and/or disposal of hazardous substances including fuels and other flammable liquids; and the requirements of the County Health Department and Drain Commissioner.

B. Sensitive Lands:

1. Site Development: Where a portion of a lot is characterized by sensitive or fragile environmental features, including wetlands, hydric soils, or flood plains, new development on the lot shall only occur on those portions of the lot void of such features where reasonably feasible. Where not reasonably feasible, new development shall comply with all county, state and federal laws, rules and permit and approval requirements.
2. Permits: Except where required to do so by state or federal law, the Township shall not approve any land use which requires a county, state, or federal permit until such permit has been obtained and satisfactory evidence has been submitted verifying the acquisition of the necessary permit.
3. Mitigation: The Township may require mitigation measures be taken to replace those resources disturbed or destroyed by a land use, or to otherwise lessen the impact of a new land use upon natural resources and sensitive areas.

C. Clearing of Top Soil, Grading, and Drainage:

1. Removal of Topsoil: Stripping and removal of topsoil from a site is prohibited prior to the completion of all approved site improvements and the seeding, sodding, and landscaping of all disturbed areas, except where expressly authorized as part of an approved site plan. “Disturbed areas” shall be interpreted to mean any area of a lot which is altered by grading or other construction activities and which area is not proposed to be paved or otherwise built upon. This subsection (1) shall not apply in the case of a single family dwelling for which a zoning permit and building permit has been issued, provided the topsoil to be removed is limited to the immediate area of the proposed site improvements according to the approved plot plat.
2. Drainage/Flow Restrictions:
   a. Temporary and permanent ground elevations surrounding a building and structure shall be designed and landscaped such that surface waters flow away from the building or structure.
   b. It shall be prohibited to increase the rate or quantity of runoff upon adjacent properties or public roads, to cause erosion or filling of a roadside ditch, stream or other water body, to block a public watercourse, or create standing water over a sewage disposal drainage field.
   c. See Article 14 regarding storm water management.

Section 14.3 Airborne Emissions

A. General: Airborne emissions shall comply with federal and state rules and regulations including rules and regulations pertaining to smoke, dust, dirt, and ash. In the absence of rules and regulations as applied to a specific use or activity on a lot, the requirements of this Section shall apply.

B. Smoke: No person shall cause or permit the discharge of smoke into the atmosphere from any single source of emission, of a density equal to or darker than No. 2 of the Ringelmann chart, or other density measure correlated to the Ringelmann chart, except as follows:

1. Smoke of a density equal to but not darker than No. 2 on the Ringelmann chart may be emitted for not more than three (3) minutes in any 30-minute period.
2. Smoke of a density equal to but not darker than No. 3 of the Ringelmann chart may be emitted for not more than three (3) minutes in any 60-minute period, but such emissions at a rate greater than three (3) occasions during any 24-hour period are prohibited.

C. Dust, Dirt and Fly Ash: No person shall operate, maintain, or cause to be operated or maintained any process for any purpose, or furnace or combustion device for the burning of coal or other natural or synthetic fuels, except according to recognized and approved equipment, means, method, device or contrivance to reduce the quantity of gas-borne or airborne solids or fumes emitted into the open air, which is operated in conjunction with said process, furnace, or combustion device, so that the quantity of gas-borne or airborne solids shall not exceed 0.20 grains per cubic foot of the carrying medium at a temperature of 500 degrees Fahrenheit.

1. Method of Measurement: For the purpose of determining the adequacy of such devices, there shall be compliance with the above-referenced conditions when the percentage of excess air in the stack does not exceed 50 percent at full load. The foregoing requirements shall be measured by the ASME Test Code for dust-separating apparatus. All other forms of dust, dirt, and fly ash shall be completely eliminated insofar as escape or emission into the open air. Documentation shall be provided that demonstrates that adequate and approved provisions for the prevention and elimination of dust, dirt, and fly ash are to be implemented.

Section 14.4 Potable Water and Sewage Disposal

Any building intended for human occupancy and used for dwelling, businesses, industrial, recreational, or institutional purposes shall not be erected, altered, used or moved upon any premises unless said building shall be provided with a potable water supply and waste water disposal system that ensures a safe and effective means of collection, treatment, and disposal of generated wastes. All sewage disposal and potable water facilities shall be constructed and maintained in accordance with the requirements and standards of the County Health Department as well as those of other applicable local, county, state, and federal agencies.

Section 14.5 Vibration

The operation of any land use including equipment and devices associated therewith, that creates vibrations that are typically discernible by human senses at or beyond the lot line of the source, is prohibited. For the purposes of this Section, “typically discernible by human senses” means vibrational motion of such character to cause a person to be aware of the vibration by such direct means as, but not limited to, sensation by touch or observation of moving objects.

Section 14.6 Glare, Heat and Radiation

A. Glare and Hear: Any operation which produces glare or heat, including arc welding and acetylene torch cutting, shall be conducted within an enclosed building or other enclosure so as to be completely imperceptible from any point beyond the lot lines of the lot upon which the source of glare or heat is located.

B. Radiation: Radiation associated with radioactive materials and wastes, including electromagnetic radiation such as X-ray machine operation, shall not exceed quantities established as safe by the U.S. Bureau of Standards, measured at the property line.

Section 14.7 Odors

No land use, activity or operation shall result in the creation of odors of such intensity and/or character as to be detrimental to the health and welfare of the public or otherwise interfere with the general comfort of the public. This Section shall not prohibit agricultural operations in compliance with the Generally Accepted Agricultural Management Practices.

Section 14.8 Noise

A. Standards and Limitations: The use of any lot shall not cause the emittance of sound from any source or combination of sources, which when measured in accordance with the procedure described herein, exceeds the sound level limits in Table 14.8-1 below.

1. Measurement of sound level shall be made using a microphone set at a height of five (5) feet along the lot line on which the sound source being measured is located.
2. A violation shall not be deemed to exist unless the sound level measured is at least six (6) decibels higher than the sound level measured with the sound source or sources not in operation. Duration of sound shall be measured by observing the sound level meter and recording the sound level measured at intervals of time not to exceed five (5) minutes.
3. All measurements shall be made using a sound level meter which meets the most current requirements of the American National Standard "Type 2 or Type 1 Sound Level Meters," and which has been set for fast meter response and the A-weighting network.

Table 14.8-1
A-Weighted Sound Level Limits (Decibels)

Duration of sound, as a percentage of any one hour period.	**Districts** Conservation and Residential		**Districts** Commercial and Industrial	
	6:00 pm - 6:00 am	6:00 am - 6:00 pm	6:00 pm - 6:00 am	6:00 am - 6:00 pm
30 minutes or more:	45	50	55	65
More than 5 minutes but less than 30 minutes:	50	55	60	70
5 minutes or less:	55	65	70	75
Maximum, any duration:	65	75	80	80

B. Exemptions: This Section shall not apply to motor vehicles registered for use on public roads, agricultural operations, home landscape maintenance machines and snow blowers that meet their respective product requirements, and the emission of sound during construction activities for a use for which a zoning permit has been issued.

Section 14.9 Natural Resource Buffer Areas

A. Definitions: For the purpose of this Section, the following words and phrases shall have the following meanings:

1. Impervious Cover: Any manmade paved, hardened or structural surface regardless of material including but not limited to rooftops, buildings, roads, decks, patios including those of a brick or stone material, swimming pools, and any concrete or asphalt.
2. Natural Feature: A wetland or watercourse.
3. Natural Feature Edge: The ordinary high water mark, except that in the case where there exists a bank along the natural feature, where the bank exceeds a slope of ten percent (10%), the natural feature edge shall be considered the top of the bank or a line thirty (30) feet from the ordinary high water mark, whichever is less.
4. Ordinary High Water Mark: The line between upland and bottomland which persists through successive changes in water levels below which the presence and action of the water is so common or recurrent that the character of the land is marked distinctly from the upland and is apparent in the soil.
5. Watercourse: Any waterway including a river, stream, creek, lake, vernal pool, pond, or any body of surface water having definite banks, a bed and visible evidence of a continued flow or continued occurrence of water.
6. Wetlands: Land characterized by the presence of water at a frequency and duration sufficient to support and that under normal circumstances does support, wetland vegetation or aquatic life, and is commonly referred to as a bog, swamp, or marsh.

B. Natural Feature Setback Required:

1. Buildings and Structures in Excess of Three (3) Feet in Height: Unless otherwise specified in this Ordinance, a natural features setback of sixty (60) feet shall be maintained from the natural feature edge for all buildings, and any structures in excess of three (3) feet in height above the ground below, except that where there exists one (1) or more dwellings located along such natural feature within one hundred fifty (150) feet of a side lot line of the lot on which construction is proposed, the required setback shall be the average setback of such existing dwellings, measured from the natural feature edge. However, in no case shall such natural feature setback be less than twenty-five (25) feet nor shall such setback be required to be greater than sixty (60) feet.
   a. Steps, and those portions of unroofed decks and porches with a floor surface eighteen (18) inches or less above the ground, shall not be considered in determining such average setback. Where only a portion of a dwelling is located within the one hundred fifty (150) foot measured distance, the setback of the entire dwelling shall be used for determining such average setback.
2. Structures of Three (3) Feet or Less in Height: Unless otherwise specified in this Ordinance, a minimum natural features setback of twenty-five (25) feet shall be maintained from the natural feature edge for all decks, patios, and any structures of three (3) feet or less in height above the ground below.

C. Use Restrictions within a Natural Feature Setback: Within a natural feature setback, unless and only to the extent determined to be in the public interest by the designated approving body for the development under consideration, there shall be no clearing, grubbing or stripping; no removal of vegetation; no application of fertilizers or pesticides; no dredging, grading, excavation, removal or addition of soil or filling of land; no erection or addition of structures, buildings or any other construction including concrete or asphalt paving; and no installation of any impervious cover. In addition, no vegetation cutting or removal within the natural features setback shall occur prior to all approvals from the designated approving body(s) have been obtained.

1. Determination of Public Interest: In determining whether proposed construction or operations in a natural resources setback are in the public interest, the benefit which would reasonably be expected to result from the proposal shall be balanced against the reasonably foreseeable detriments of the construction or other operation, taking into consideration the local, state and national concern for the protection and preservation of the natural feature in question. If, as a result of such a balancing, there remains a debatable question whether the proposed project and/or operation is clearly in the public interest, authorization for the construction and/or operation within the natural feature setback shall not be granted. The following I criteria shall be applied in undertaking this balancing test:
   a. The relative extent of the public and private need for the proposed activity;
   b. The availability of feasible and prudent alternative locations and methods to accomplish the expected benefits from the activity;
   c. The extent and permanence of the beneficial or detrimental effects which the proposed activity may have on the public and private use to which the area is suited, including the benefits the natural feature and/or natural feature setback provides;
   d. The probable impact of the proposed construction and/or operation in relation to the cumulative effect created by other existing and anticipated activities on the natural feature to be protected;
   e. The probable impact on recognized historic, cultural, scenic, ecological, or recreational values, and on fish, wildlife and the public health;
   f. The degree of proposed encroachment into the natural features setback, and the proximity of the proposed construction and/or operation in relation to the general natural feature, taking into consideration the degree of slope, general topography in the area, soil type and the nature of the natural feature to be protected;

D. Exemptions: If and to the extent the Township is prohibited from regulating the proposed activity in or on the respective natural feature by its ordinances or the laws of county, state or federal government or the rules of county, state or federal agencies, regulation under this Section shall be exempted. In addition, the following activities shall be exempted from regulation under this Section provided such activities shall comply with all county, state or federal laws and the rules of county, state or federal agencies, and all necessary approvals and permits have been granted. It is not the intent of this subsection (D) to exempt regulation by other ordinances and laws applicable to the natural feature.

1. Installation of a fence.
2. Maintenance of previously established lawn areas.
3. Grading and filling necessary in order to conform to express requirements imposed by the Township.
4. Installation of docks and decks provided any portion extending through or across a wetland does not exceed ten (10) feet in width.

5. Planting of non-invasive trees and other vegetation, but not the use of fertilizers.
6. Work consisting of the repair or maintenance of any lawful use of land approved for such use.
7. Agriculture, landscaping, gardening and lawn maintenance, including the removal of dead and diseased vegetation.
8. The clearing of up to thirty percent (30%) of the vegetation in the natural features setback to afford views and/or access to the natural feature, provided adequate measures are taken to prohibit the exposure of bare soil and soil erosion, such as the establishment of grasses or other vegetative ground cover.
9. Any lawful activity that is under construction and for which all necessary permits have been granted.

Section 14.10 Storm Water Management

A. Applicability: Uses subject to this Section shall be limited to those uses subject to site plan approval according Article 6 of this Ordinance unless expressly provided otherwise by this Ordinance.

B. General Standards: All uses shall be designed, constructed, and maintained to prevent flooding, protect water quality, reduce soil erosion, maintain and improve wildlife habitat, and contribute to the aesthetic values of the project. In meeting these requirements, the following standards shall apply to the greatest extent practical and feasible:

1. All storm water drainage and erosion control plans shall meet the rules and regulations of the County Drain Commissioner and any additional regulations as this or other ordinance may provide, including standards pertaining to discharge volumes and the design of retention and detention areas. Compliance with such standards shall, to the maximum extent feasible, utilize nonstructural control techniques including, but not limited to: limitation of land disturbance and grading; maintenance of vegetated buffers and natural vegetation; minimization of impervious surfaces; use of contoured landscapes, runoff spreaders, and grass or rock-lined swales; and use of infiltration devices.
2. The particular facilities and measures required on-site shall reflect and incorporate existing grade, natural features, wetlands, and watercourses on the site.
3. Storm water management systems shall be designed to prevent flooding and the degradation of water quality related to storm water runoff and soil erosion from proposed development for adjacent and downstream property owners.
4. Site development and storm water management systems shall maintain natural drainage patterns and watercourses.
5. The conveyance of storm water shall rely on swales and vegetated buffer strips to the greatest extent feasible and practical.
6. Drainage systems shall be designed to be visually attractive including the integration of storm water conveyance systems and retention and detention ponds into the overall landscape concept. Ponds shall be designed to be naturally contoured, rather than a square or rectangular design.
7. It shall be prohibited to increase the rate or quantity of runoff upon adjacent properties or public roads, to cause erosion or filling of a roadside ditch, stream or other water body, to block a public watercourse, or create standing water over a sewage disposal drainage field.
8. Whenever a landowner is required to provide on-site storm water retention and/or surface drainage to wetlands, or whenever other protective environmental measures including monitoring devices are required, such measures or facilities shall be provided and maintained at the landowner's expense. The landowner shall provide satisfactory assurance to the Township, whether by written agreement or otherwise, that the landowner will bear the responsibility for providing and maintaining such methods or facilities.

C. Minimizing Storm Water Runoff

1. Roads constructed as part of a subdivision or similar unified development shall be designed to minimize storm water runoff such as limiting road paving to the minimum necessary width while adequately addressing anticipated traffic levels, on-street parking, and emergency vehicle needs.
2. Roof-top runoff shall be directed to pervious areas such as yards, open channels, or other vegetated areas.
3. Clearing and grading shall be limited to only those locations approved for such landscape alterations as delineated on the approved site plan.

D. Use of Wetlands: Wetlands may be used for storm water management if all the following conditions are met:

1. All runoff from the development will be pre-treated to remove sediment and other pollutants prior to discharge to a wetland. Such treatment facilities shall be constructed before property grading begins. Storm water runoff discharged to wetlands must be diffused to non-erosive velocities before it reaches the wetland. Direct discharge of untreated storm water to a wetland is prohibited.
2. Wildlife, fish, or other beneficial aquatic organisms and their habitat within the wetland shall not be impaired.
3. The wetland has sufficient holding capacity for storm water, based upon calculations prepared by the applicant and reviewed and approved by the township after consultation with an engineer of applicable expertise.
4. Adequate on-site erosion control is provided to protect the natural functioning of the wetland.
5. Adequate private restrictions are established, such as a conservation easement over the wetlands, to insure that the wetland is not disturbed or impaired in the future relative to the needed storage capacity.
6. Applicable permits from the Michigan Department of Environmental Quality and any other agency of jurisdiction are obtained.

End of Article 14

Article 15
ACCESS and PRIVATE ROADS

Section 15.1 Purpose

The purpose of this Article is to provide regulations and standards that will facilitate safe, practical and efficient traffic movement and vehicular access in the Township, including provisions addressing the design, construction and maintenance of private roads. The standards contained herein are intended to protect the public health, safety, and welfare, including minimizing congestion and potential for accidents, and better assure accessibility to property under emergency conditions. The regulations and standards of this Article apply to all properties in the Township unless specified otherwise, and shall be applied in addition to the requirements of the County Road Commission and other provisions of this Ordinance.

Section 15.2 Lots to Have Access

All lots hereinafter created in the Township shall have frontage on a public road, or private road constructed and approved according to this Ordinance, and take their access from such frontage so as to provide safe, convenient access for fire protection, other emergency vehicles, and any required off-street parking. This Section shall not apply to lots used exclusively for agricultural operations.

Section 15.3 Driveways

A. Approval Required: All plans for structures to be erected, altered, moved or reconstructed, and use of premises, shall contain a plan for the proposed driveway access to the premises which shall be part of the required plot plan or site plan.

B. Standards: Driveways shall meet the following minimum standards:

1. All driveways shall be within ten (10) degrees of perpendicular to the road at their point of intersection.
2. Residential driveways in excess of two-hundred (200) feet in length shall be a minimum of twelve (12) feet in clear unobstructed width, be clear and unobstructed to a minimum height of fourteen (14) feet, and shall be constructed of a minimum two (2) inch thickness of asphalt or concrete, or six (6) inches of gravel, stone, or similar aggregate material capable of facilitating emergency vehicle access.
3. Non-residential driveway ingress and egress points shall comply with the following additional standards:
   a. Shall not be closer than one-hundred (100) feet to the intersection of any two (2) roads or closer than one hundred (100) feet to a non-residential driveway on an adjacent lot, except upon a finding by the site plan approving body that lesser separation distances shall not undermine the public health, safety and welfare based on vehicle speeds, projected turning patterns and vehicle trips.
   b. Shall comply with the locational and design standards of the County Road Commission including turning radii, tapers, and cross-sectional design, for any improvements or modifications within a public road right-of-way.
   c. See Section 12.3 regarding off-street parking aisles and related standards.
   d. This subsection (3) shall not apply to ingress and egress points used exclusively for agricultural operations.

Section 15.4 Clear Vision Zone

No fence, wall, hedge, screen, sign, structure, vegetation or other obstruction shall be located so as to impede vision between the height of two (2) feet and ten (10) feet above road elevation on any corner lot, within twenty-five (25) feet of the intersecting road right-of-way lines. No fence, wall, hedge, screen, sign, structure, vegetation or other obstruction shall be located so as to impede vision between the height of two (2) feet and ten (10) feet above road elevation within twenty-five (25) feet of an intersecting driveway edge and a road right-of-way line.

Section 15.5 Private Roads

A. Private Roads Permitted: Private roads are permitted provided such roads comply with the regulations and standards of this Ordinance.

B. Zoning Permit Required: No private road, including a new private road or a private road existing on the effective date of this Ordinance, shall be constructed, extended, improved, or relocated unless a zoning permit has been issued for such construction by the Zoning Administrator, after approval by the designated site plan approval body. No permit is required for routine maintenance of existing roads such as road patching, resurfacing, and regrading of road surfaces.

C. Application for Zoning Permit for Private Road Construction: Application for a private road shall require site plan approval according to Article 6. Approval of such application shall result in the issuance of a zoning permit authorizing construction of such road. In addition to the data required by Article 6 for site plan approval, the following additional information shall be provided:

1. Development Plan: A general property development plan identifying the following:
   a. Project description, in both narrative and map form, including the location of the proposed private road easement and location of proposed lots to gain access from said private road.
   b. The legal description of the proposed private road easement.
   c. Construction plans and drawings illustrating the proposed design and construction features of the proposed road and easement, including existing and proposed elevation contours within all areas to be disturbed or altered by construction. Proposed traffic control measures (including signs) and proposed road names shall also be indicated.
2. Easement Agreement: Road easement agreement to be signed by the applicant/owner(s) and to be recorded with the Township Clerk and County Register of Deeds providing for:
   a. Easements to the public for purposes of emergency and other public vehicles, and easements for utilities.
   b. A provision that the owners of any and all of the property using the road shall refrain from prohibiting, restricting, limiting or in any manner interfering with normal ingress and egress and use by any of the other owners. Normal ingress and egress and use shall include use by family, guests, invitees, vendors, tradesman, delivery persons, and others bound to or returning from any of the properties having a need to use the road.
   c. A provision that substantially conforms to the following:
   "This lot or parcel of land has private road access across a permanent easement which is a matter of record and a part of the deed. This notice is to make Purchaser aware that this parcel of land has egress and ingress over this easement only. Clare County and Lincoln Township have no responsibility for maintenance or upkeep of any improvement across this easement, except as may be provided by an established special assessment district. Maintenance is the responsibility of the owners of record. The United States mail service and the local school district are not required to traverse this private improvement and may provide service only to the closest public access."
3. Maintenance Agreement: Road maintenance agreement to be signed by applicant/owner(s) to be recorded with the County Register of Deeds providing for:
   a. A method of initiating and financing such road in order to keep the road up to properly engineered specifications and free of snow and debris.
   b. A workable method of apportioning the costs of maintenance and improvements to current and future owners.
   c. A notice specifying that the proposed development may be subject to the establishment of a special assessment district by the Township Board, as provided by law, to ensure continued and adequate maintenance of the road in the event the necessary maintenance is not undertaken by the property owners that are served by such road, and that no public funds of the Township shall be used to build, repair, or maintain the private road except through such an assessment district.

D. Use of Private Road: Upon completion of the construction of a private road as authorized by an approved site plan and zoning permit, no construction shall be initiated nor shall any zoning permit be granted for any structure or use of a lot that relies upon such road for access until the designated site plan approval body grants final approval for use of the road in the form of a Private Road Certificate of Compliance. The site plan approval body shall grant such final approval when the following conditions have been met:

1. The applicant's civil engineer, registered in the State of Michigan, shall certify in writing that the required improvements were made in accordance with this Article and Ordinance and all approved plans.
2. The Township's engineer has completed a review of the road and has submitted a report documenting the extent to which the required improvements were made in accordance with this Article and Ordinance and all approved plans.
3. The Township Clerk has received copies of the approved road easement agreement and road maintenance agreement recorded with the County Register of Deeds.
4. The Township Clerk has received an agreement from the applicant that indemnifies and holds harmless the Township and its representatives from any and all claims of personal injury and property damage arising from the use of the private road.
5. The Township Clerk has received adequate documentation that all necessary approvals have been granted by the County Road Commission and County Drain Commissioner.
6. The Township Clerk has received payment from the applicant for all costs incurred by the township in association with the verification of the constructed road's compliance with this Ordinance.

E. Design Standards: Private roads shall be located and constructed according to the standards of the County Road Commission applicable to a public road that would function in the same general manner as the proposed private road, including drainage, ground elevations, slopes, and alignments, except as provided below and Section (F).

1. Easement Width and Surface Width: A private road shall be within a private road easement of a minimum width of sixty-six (66) feet, and the private road shall have a minimum drivable surface of twenty (20) feet.
2. Maximum Length: The terminus of a dead-end private road shall not be more than five-hundred (500) feet from an intersection of another private or public road that is not a dead-ended road.
3. Cul-de-sac: Private roads that terminate at a dead-end shall include a cul-de-sac of a minimum sixty (60) foot radius.
4. Road Material/Depth
   a. Private roads that serve less than six (6) lots or dwellings shall have a minimum surface material and depth equal to six inches (6") of MDOT 22A processed road grave, applied in two (2) equal compacted courses, upon compacted subgrade.
   b. Private roads that serve six (6) or more lots or dwellings shall have a minimum surface material and depth equal to six inches (6") of MDOT 22A processed road grave, applied in two (2) equal compacted courses, above six inches (6") of Class 2 sand.
5. Vertical Clearance: Fourteen (14) feet of overhead clearance shall be provided within the width of the road surface.
6. Road Names and Signs: All private roads shall be posted with clearly visible road names. Road signs shall comply with County Road Commission regulations and shall clearly indicate the road is private. All signs within the private road easement shall be identified on the site plan and be in accordance with the Michigan Manual of Uniform Traffic Control Devices. Road signs shall be provided at all intersections. All private road names shall be subject to Township and County Road Commission approval to ensure no duplication of road names or other road names that may create confusion for emergency services.

F. Waiver of Design Standards: Private roads shall be constructed according to the standards of subsection (E) above except that the site plan approving body may consider and accept alternative design standards that an applicant may propose and, upon finding such alternatives provide equal or greater structural stability and longevity and do not undermine the public health, safety and welfare, may approve such alternatives. Sufficient engineering data shall be submitted to substantiate the proposed alternative and its merits.

G. Existing Nonconforming Private Roads

1. Maintenance and Existing Lots: Private roads that were lawful prior to the adoption of this Ordinance or amendment thereto, but that are inconsistent with the standards herein, may continue and undergo routine maintenance. The erection of new dwellings or other principal buildings on existing lots which front along such private road is permitted.
2. Extensions: No private road that was lawful prior to the adoption of this Ordinance or amendment thereto, but that is inconsistent with the standards herein, shall be extended in length, or be subject to an increase in the number of building sites through the partitioning of land along such road or road extension, except upon a finding that the road will be capable of providing sufficient access including year round access for emergency vehicles. The site plan approving body may require improvements of such road as a condition of the establishment of new building sites, and may require compliance with the standards of this Article as applied to the entire road, the extension segment to the road, and/or one (1) or more other portions of the entire road.

End of Article 15

Article 16
SIGNS

Section 16.1 Purpose

The purpose of this Article is to provide a framework in which the identification and informational needs of all land uses can be harmonized with community interests in public health, safety and welfare, including the preservation of the Township's overall rural character and that of its business and residential areas. It is intended through the provisions contained herein to give recognition to the legitimate needs of business, industry and other activities, in attaining their identification and informational objectives, while recognizing that unrestricted or unregulated signage does not support the desired character of the Township nor benefit either private enterprise or the community-at-large. Unrestricted signage creates traffic safety hazards, visual clutter, confusion for vehicle drivers, visual blight, and decreased property values, and undermines economic development initiatives.

Section 6.2 Definitions

A. Electronic Message Center (EMC) Signs: A sign that is capable of displaying words, symbols, figures or images that can be electronically or mechanically changed by remote or automatic means. An EMC sign may be a free-standing sign, monument sign, or wall sign, as defined herein.

B. Free-Standing Sign: A sign face supported by a center or multiple poles, posts or similar support mechanisms, and the bottom of such sign face in more than twenty-four (24) inches above the ground.

C. Monument Sign: A sign, the bottom of which is twenty-four (24) inches or less above the ground below, and which may be supported by a center or multiple poles, posts or similar support mechanisms, or may extend down and into the ground, similar in character to a monument.

D. Illumination/Illuminate: The act of highlighting the visual presence and/or impact of a sign by the use of artificially created light, such as through electrical devices.

1. "Internal illumination" refers to the incorporation of the light source behind the sign face intended to be highlighted and enclosed within the framing of the sign. For the purpose of this Article, an EMC sign shall be construed to be an internally illuminated sign.
2. "External illumination" refers to the placement of the light source in front, above, below and/or to the side of the sign face intended to be highlighted. External illumination is not enclosed within the framing of the sign.

E. Projecting Sign: A sign mounted on a building façade, generally perpendicular to the building façade and which projects over the ground surface below, and is designed or intended to be principally viewed from a position generally alongside the façade and not viewed from a position generally facing the façade. A sign on a marquee, canopy or awning-type structure, irrespective of the direction the sign faces, shall not be construed as a "projecting sign."

F. Sign: Any words, lettering, parts of letters, figures, numerals, phrases, sentences, emblems, devices, designs, banner, flag, pennant, trade names or marks, or other representation, or combination thereof, designed for the purpose of directing attention to, advertising or identifying an individual, a firm, an association, a profession, a business, a commodity or product, an activity, a philosophy, or an idea, which is located upon any land or structure on or in any building.

G. Temporary Sign: A sign designed to be moved periodically or displayed for a limited and comparatively short period of time only, without a foundation, footing or similar permanent underground anchoring system, such as in the case of a "grand opening" sign, a sign announcing an upcoming community event, and signs mounted on wheeled trailers.

H. Wall Sign: A sign which is attached directly to a building wall with the sign area surface flat against or generally parallel to the building wall, within eight (8) inches from the face of the wall, including signs painted on a building wall and signs on a projecting rigid or non-rigid fabric marquee, canopy or awning-type structure.

Section 16.3 General Standards and Regulations

A. Compliance, Permits and Review

1. Compliance Required: No sign shall be erected, used or maintained unless in compliance with the regulations of this Article.
2. Required Permit/Review: All signs shall require a zoning permit prior to placement, erection, replacement or alteration unless exempted by subsection (4) below. All signs shall require a building permit as may be required by the State Construction Code.
   a. A sign for a use subject to site plan review according to Article 6 shall be acted upon by the Planning Commission, either as part of the site plan review procedure for the entire project or as part of a proposed revision to a previously approved site plan.
   b. A sign for a use that is not subject to site plan review according to Article 6 shall be acted upon by the Zoning Administrator.
3. Application Information: An application for a zoning permit for a sign shall include the following minimum information regarding such sign:
   a. The location and placement of the proposed sign on the lot and/or building façade.
   b. A fully dimensioned scale drawing of the plans, specifications and method of construction and/or attachment. Drawings shall include the colors and materials types to be used.
   c. Written consent of the owner of the lot, building, and/or structure, if other than the applicant.
   d. A copy of all construction, electrical, or other permits required and issued for the sign.
   e. Any other information the approving body may require to establish conformance with the Ordinance.
4. Signs Exempt from Permit/Review: The following signs are exempt from the provisions of subsection (2) above but shall conform to all other regulations and standards of this Article including sign area, height and setback standards.
   a. Signs required by a public agency having jurisdiction over a road right-of-way.
   b. Official notices issued by a public agency, court, or government official.
   c. Signs painted on operating, licensed commercial motorized vehicles.
   d. Ordinary maintenance, servicing, repainting, cleaning, altering, or changing the information of an existing sign, provided the size, location and/or structure are not changed.
   e. Public, private and personal flags which contain no advertising of products or services.
   f. Indoor signs affixed to or covering windows.
   g. Signs authorized under Section 16.6.
   h. Signs less than six (6) sq. ft. in area not otherwise listed above.

B. Materials, Construction, Design and Maintenance:

1. Building Code: All signs shall be constructed and maintained in a manner consistent with building code provisions and maintained in good structural condition at all times, free of hazards to the general public. Signs shall not be constructed from materials that are remnants or manufactured for a different purpose.
2. Integrally Designed: A sign shall be integrally designed so that its elements are of a unified character and are not comprised of an assemblage of different sign types and materials. No support shall be used accommodate multiple signs intended to serve the same business, tenant or occupant of a lot.
3. Width/Length Ratio: No free-standing sign shall have a dimension that exceeds five times that of its opposite dimension, such as in the case of a sign's width and length.
4. Maintenance: All signs shall be kept neatly painted, stained, sealed or preserved including all metal parts and supports. Signs shall be maintained free of peeling material, fading, rust, rot, insect infestation or other conditions reflective of a state of disrepair.

C. Lighting:

1. Authorized Lighting: Signs may be illuminated unless specified otherwise, and may be internally or externally illuminated unless specified otherwise. Lighting shall comply with the National Electrical Code.
2. Moving Illumination: No sign shall include flashing, blinking, moving or variable intensity illumination except as authorized in subsection (5) below in association with an EMC sign.
3. Exterior Illumination: The source of exterior sign illumination shall be shielded from public road right-of-ways and adjacent properties, and shall not be visible beyond the property line of the lot on which the sign is located. All externally lit signs shall be illuminated by lights affixed to the sign and directed downward on the sign face only. This subsection (3) shall not apply to neon lights, and exposed bulbs not exceeding fifteen (15) watts, provided such signs shall not exceed four (4) sq. ft. in area.
4. Interior Illumination: The source of interior sign illumination shall be shielded from public road right-of-ways and adjacent properties, and shall not be visible beyond the property line of the lot on which the sign is located.

5. EMC Signs:
   a. An image on an EMC sign, and any portion of an image on an EMC sign, shall stay constant for a minimum of thirty (30) seconds, without any change in movement, light intensity or color. Message scrolling and similar moving messages are prohibited.
   b. Any change or transition in display on an EMC sign shall not exceed one (1) second in duration.
   c. An EMC sign shall have no message changes during hours that the business or use is not open or otherwise available to the public.
   d. An EMC sign shall be equipped with automatic dimming technology that automatically adjusts the sign's brightness in direct correlation with ambient light conditions. No EMC sign shall exceed a brightness level of 0.3 foot candles above ambient light as measured using a foot candle meter at a distance determined by the square root of the sign's square foot area multiplied by 100. An example of such a determination in the case of a 12 sq. ft. sign is:

$$\sqrt{(12 \times 100)} = 34.6 \text{ feet measuring distance}$$

D. Measurements

1. Sign Area: The area of a sign shall be computed by calculating the square footage of a sign face as measured by enclosing the most protruding points or edges of all sign faces of the sign within a parallelogram, rectangle, triangle, or circle, or combination thereof, including any framing.
   a. Where a sign has two (2) or more similarly shaped faces placed back-to-back, parallel to one another and less than eighteen (18) inches apart from one another, the area of the sign shall be the area of one (1) face.
   b. Where a sign has two (2) faces placed back-to-back, parallel to one another and less than eighteen (18) inches apart from one another, but the signs are of differing sizes, the sign area shall be that of the larger sign.
   c. In the case of a sign with three or more faces, the area of the sign shall be the area of all faces combined. Sign faces separated by more than eighteen inches (18") shall be considered to have three (3) or more faces.
2. Sign Setbacks: Sign setbacks shall be measured from the lot line horizontally to the nearest edge of the sign. The "nearest edge of the sign" shall be the leading edge of the sign closest to such lot line as viewed from above in plan or bird's eye view.
3. Sign Height: The height of a sign shall be measured from the highest point of the sign, including all frame and structural members of the sign, to the average ground elevation within ten (10) feet of the sign base. The height of a sign placed upon a berm shall be measured from the base elevation of the berm.

E. Prohibited Signs. The following signs are prohibited:

1. Traffic Interference Signs:
   a. Signs which, due to location, design, color, or lighting, encourage confusion among drivers due to unauthorized traffic signs, signals or devices, or signs that make use of the words "stop", "look", "danger" or any word, phrase, symbol or character in such manner as to interfere with, mislead or confuse drivers or pedestrians.
   b. Signs that obstruct free and clear vision of approaching, intersecting or merging traffic.
2. Moving and Flashing Signs: Signs that have flashing lights, visible moving parts, visible revolving parts or visible mechanical movement of any type, or other apparent visible movement irrespective of the cause of the movement.
   a. Banners, pennants, festoons, spinners and streamers, and similar devices, which move due to wind or mechanical devices and which are intended to draw attention to a location are considered moving signs and are prohibited except as otherwise expressly authorized in association with a temporary sign according to Sec. 16.6.
   b. This subsection (2) shall not be construed to prohibit EMC signs or signs that rely on light-emitting diodes (LEDs) provided such signs are in compliance with Sec. 16.3(C).
3. Projecting Signs and Roof Signs: Projecting signs as defined herein and signs affixed to a roof and other signs that extend in height above the roof behind such sign.
4. Vehicle Signs: Signs greater than sixteen (16) square feet when located on parked vehicles, within view of a public right-of-way or adjacent lot, where the sign is the primary use of the vehicle during any forty-eight (48) hour period.
5. Banners: Signs comprised of banners except as otherwise expressly authorized in association with a temporary sign according to Sec. 16.6.
6. Sexual Content: Signs that have any words, lettering, photographs, silhouettes, drawings, or pictorial representations of a sexually explicit character including any sign elements portraying "specified

anatomical areas" or "specified sexual activities" as defined in Article 18 under "Sexually Oriented Businesses."

7. Signs No Longer Applicable: Signs that advertise an activity, business, product, or service no longer conducted or available on the premises on which the sign is located.
8. Off-Premises Advertising Signs: Signs that identify goods, services, facilities, events, or attractions which are available or provided at a location other than the lot upon which such sign is located (commonly referred to as a "billboard").
9. Other Signs:
   a. Signs that are painted on or attached to any fence or any wall that is not a structural part of a building except to identify a residence or in the case of a temporary sign authorized pursuant to Section 16.6.
   b. Signs that emit audible sound, odor, or visible matter.
   c. Any sign or sign structure which constitutes a hazard to public health or safety due to inadequate maintenance.
   d. Any sign not expressly authorized by this Ordinance.

F. Window Signs: No sign affixed to or covering a window which is intended to be viewed from the outside shall exceed one-quarter (25%) of the total window area except in the case of the advertising of the grand opening of a business according to Section 16.6. Window signage in excess of a total of sixteen (16) sq. ft. shall be applied to the calculation of total wall sign area.

Section 16.4 Nonconforming Signs

A. Continuance: The continuance of a lawful use of any sign existing on the date of adoption of this Ordinance or amendment thereto, although such sign may not conform to the provisions of this Article, shall be permitted according to Article 11 except that the following are prohibited:

1. A nonconforming sign shall not be replaced with another nonconforming sign. This limitation shall not prohibit replacing the sign message of the nonconforming sign provided no structural or frame alterations are made to such sign.
2. A nonconforming sign shall not be structurally altered or undergo changes to its shape, size, type, or design except where such changes shall result in removing all nonconforming aspects of the sign.
3. Should a nonconforming sign be destroyed by any means to an extent of more than fifty percent (50%) of its replacement value, exclusive of foundations, it shall not be reconstructed except in conformity with the provisions of this Article.

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Section 16.5 Permitted Signs by District

Table 16.5-1 identifies authorized signs in each district for the purpose of providing information pertaining to the use of the lot, businesses or other entities occupying the lot, products and/or services available on the lot, and similar information pertaining to the use of the lot, according to the limitations specified in the Table regarding sign type, number, area, height and setbacks.

Table 16.5-1
See "Special Provisions" following Table.

FS = Free-Standing Sign MS = Monument Sign WS = Wall Sign

District See Sec 3.1 for District Classification	**Authorized Signs and Maximum Number**	**Maximum Area Of Signs**	**Maximum Sign Height**	**Minimum Sign Setback from Lot Lines**
Conservation See Sec. 16.6 for dwellings.	**FS / MS** 1 FS or 1 MS **WS** 1	**FS:** 12 sq. ft. **MS:** 16 sq. ft. **WS:** 16 sq. ft.	**FS:** 8'. **MS:** 5'. **WS:** Top of wall.	**FS / MS:** 5' from front lot line and 25' from other lot lines.
Residential See Sec. 16.6 for dwellings.	**FS / MS** 1 FS or 1 MS **WS** 1	**FS:** 12 sq. ft. **MS:** 16 sq. ft. **WS:** 16 sq. ft.	**FS:** 8'. **MS:** 5'. **WS:** Top of wall.	**FS / MS:** 5' from front lot line and 25' from other lot lines.
Commercial and Industrial	**FS / MS** 1 FS or 1 MS **WS** 1	**FS / MS:** 1 sq. ft. for each 1' of building height or length generally oriented to the road, whichever is greater, measured as a straight line between the ground elevation and the lowest portion of the roof or between building corners, provided no sign shall be greater than 24 sq. ft. in the C-1 District and 32 sq. ft. in the C2, I-1 and I-2 Districts. **WS:** 10% of the vertical area of the building façade to which the sign is attached, except no sign must be less than 16 sq. ft. and no sign shall be greater than 32 sq. ft. in the C-1 District and 64 sq. ft. in the C2, I-1 and I-2 Districts.	**FS:** 12' in C-1 District; 16' in C-2, I-1 and I-2 Districts. **MS:** 6' in C-1, C-2, I-1 and I-2 Districts. **WS:** Top of wall.	**FS:** In C-1 District, 5' from front lot line and 25' from other lot lines. In C-2, I-1 and I-2 Districts, 5' from front lot line and 40' from other lot lines.

Table 16.5 -1 Special Provisions

1. **EMC Signs:**
   a. That portion of an EMC sign designed to display changing words, symbols, figures or images shall not exceed six (6) feet in height above the ground in Commercial and Industrial Districts and shall not exceed five (5) feet in height in all other Districts.
   b. That portion of an EMC sign designed to display changing words, symbols, figures or images shall not exceed eight (8) sq. ft. in area in Commercial and Industrial Districts and shall not exceed four (4) sq. ft. in all other Districts.
2. **Corner Lot:** The standards of Table 16.5-1 shall apply to each frontage separately for a corner or through lot, provided each frontage meets the minimum lot width standard of the district in which it is located.

3. Business Center Signs:

a. Business Center Defined: For the purpose of this subsection (3), a business center shall be defined as a grouping of two or more business establishments on one (1) or more lots that are linked architecturally or otherwise developed as a unified grouping of businesses and may share parking and access.

b. Freestanding Signs: A business center shall be permitted one (1) free-standing sign or one (1) monument sign, not to exceed thirty-two (32) sq. ft. in area and eight (8) feet in height, for the purpose of identifying the business center and displaying a directory of the individual businesses or tenants contained within. Such sign shall not exceed twenty-four (24) sq. ft. where no directory is provided.
   (1) In the case of a business center that exceeds three hundred (300) linear feet of building facade along a single road, one (1) additional freestanding sign is permitted provided a minimum of three hundred (300) feet is maintained between such signs.
   (2) In the case of a business center comprised of multiple buildings, one (1) monument sign shall be permitted for each building provided such sign is located in the immediate proximity of the building to which it pertains and does not exceed five (5) feet in height and eighteen (18) sq. ft. in area.

c. Wall Signs: A business center shall be permitted one (1) wall sign according to the height and area standards of 16.5-1, for the purpose of identifying the business center and which may include information on individual businesses or tenants located within. In addition, the business center shall be permitted one (1) wall sign for each business or tenant space having frontage along a public road or parking area, and such sign shall be attached to the façade of such business or tenant space.
   (1) The total area of all wall signs shall not exceed ten percent (10%) of the vertical surface area of the facade forming the building frontage generally oriented to the road frontage or parking area.
   (2) The total wall sign area for a specific business or tenant having frontage along such public road or parking area shall not exceed ten percent (10%) of the vertical surface area of the frontage facade comprising the specific business or tenant facade.

Section 16.6 Additional Signs Permitted in All Districts

A. Authorization and Limitations: The signs delineated in subsection (B) are permitted in all Districts in addition to the signs authorized by Section 16.5, subject to the standards and limitations prescribed herein and the following:

1. Section 16.3: Signs shall comply Section 16.3.
2. Setbacks: Signs shall be set back from side and rear lot lines a minimum distance equal to the setback standards prescribed in Table 3-4 of Article 3 for the principal building, and ten (10) feet from the front lot line, unless provided otherwise.
3. Illumination: Signs shall not be illuminated unless otherwise provided.
4. Area Calculations: Signs permitted by this Section shall not be applied toward the permissible sign areas authorized by Section 16.5.

B. Permitted Signs

1. Dwelling and Day Care identification signs: One (1) sign may be erected for the purpose of identifying a dwelling unit and one (1) additional sign may be erected for identifying a family home day care facility. Such sign shall not exceed two (2) sq. ft. in sign area and may be illuminated. These limitations shall not prohibit the display of an additional non-illuminated address identification sign posted along the abutting road for postal and emergency identification purposes where such sign complies with the most current guidelines published by the U.S. Postal Service.
2. Home occupation identification signs: One (1) sign may be erected for the purpose of identifying a home occupation. Such sign shall not exceed four (4) sq. ft. in area.
3. Development Identification: A residential or non-residential development consisting of a platted subdivision, condominium subdivision, multiple family development, manufactured housing community, or other unified development consisting of at least five (5) dwelling units or at least three (3) buildings used for commercial, industrial or institutional purposes, shall be permitted one (1) sign per vehicle entrance having a sign area not exceeding sixteen (16) sq. ft. and a height not exceeding five (5) feet. The sign shall be for the sole purpose of identifying the development and may be illuminated.
4. Real Estate/Dwelling Unit/Personal Property Availability Signs:
   a. A sign advertising the sale or lease of the lot, building, building space, or residence on which the sign is located shall be permitted, provided no more than one (1) sign shall be erected for each three hundred (300) feet of road frontage. No sign shall exceed an area of six (6) sq. ft. and a height of six (6) feet.

b. A platted subdivision, site condominium, multiple family development, manufactured housing community, or other unified residential or non-residential development consisting of at least five (5) dwelling units, or three (3) acres of land in the case of a non-residential development, is permitted one (1) sign advertising the sale or lease of lots, buildings or residences, not exceeding eighteen (18) sq. ft. in area and five (5) feet in height. Such sign shall be removed after two (2) years or after the sale of seventy-five percent (75%) of all lots, units, or buildings within said development, whichever occurs first.
c. In addition to (a) and (b) above, signs not exceeding three (3) square feet in area, three (3) feet in height and four (4) in number, providing directional information to a dwelling or building for sale and available for viewing. Such signs shall not be erected prior to or remain after the day of viewing.

5. Construction Signs: Non-illuminated signs identifying the owners, financiers, contractors, architects and engineers of a project under construction and for which a zoning permit has been granted, provided no more than three (3) such signs are erected with each being no greater than six (6) sq. ft. in area and six (6) feet in height, or one (1) sign is erected with an area no greater than twenty-four (24) sq. ft. and eight (8) feet in height. In the case of a sign in association with the construction of a single-family or two-family dwelling, the forgoing standards for sign area and height shall be reduced by thirty percent (30%). Construction signs shall be erected no earlier than thirty (30) days prior to the commencement of construction and shall be removed no later than fourteen (14) days after a certificate of occupancy is issued or two (2) years, whichever occurs first.
6. Schedule Signs: Signs for the purpose of providing information on upcoming regularly scheduled events to occur on the lot on which the sign is located, such as in the case of religious services and health screenings. “Schedule signs” shall rely on letter, number and other graphic characters of no greater than two (2) inches in height. Such sign shall have a maximum height of six (6) feet and shall not exceed twelve (12) sq. ft. Such sign shall be setback a minimum distance of twenty-five (25) feet from all lot lines and may be illuminated.
7. Political or philosophical signs related to a candidate running for office, or a proposition up for public vote, or a political or philosophical view, provided such signs shall not exceed four (4) sq. ft. in area and four (4) feet in height. Where the sign pertains to a public vote, such signs in Commercial and Industrial Districts shall not exceed thirty-two (32) sq. ft. in area and six (6) feet in height during the 60-day period prior to and the 15-day period after the respective vote.
8. Directional Signs: Signs that are used solely for the purpose of providing traffic directions or instructions in association with a lot on which they are located, such as “entrance,” “exit, “in,” and “out”, are permitted in all districts on the lot on which they serve provided such signs shall not exceed two (2) sq. ft. in area and three (3) feet in height. Such signs may be illuminated.
9. Warning/No Trespassing Signs: Warning signs such as no trespassing, no hunting and warning of electrical current or animals, provided that such signs do not exceed two (2) sq. ft.
10. Building Signs: Signs carved into stone, concrete, or similar material, or made of bronze, aluminum, or other noncombustible material, which identify the name of a building, a building’s date of erection, or monumental citations, provided such signs do not exceed ten (10) sq. ft. in area and are an integral part of the building structure.
11. Stick-On Signs: Miscellaneous stick-on and painted signs affixed to vending machines, gas pumps, ice containers, and similar outdoor items of less than six (6) feet in height, indicating the contents or announcing on-premises sales, provided each sign does not exceed two (2) sq. ft. in area.
12. Historical Markers: Historical markers, plaques, or signs describing township, county, state or national designation as an historic site or structure by the State Historical Commission, including centennial farms, not exceeding twenty (20) sq. ft. in area and six (6) feet in height. Such signs may be illuminated.
13. Public Notice Signs: Notices of a governmental entity as may be deemed necessary and appropriate by the unit of government.
14. Roadside Stand/Farm Market: One non-illuminated (1) sign for the purpose of advertising the sale of agricultural produce and products, erected on the lot where such produce was cultivated, or on a separate lot or portion of a lot under same ownership as the lot where such produce was cultivated, and located in the Conservation District. Such sign shall not exceed sixteen (16) sq. ft. in area and shall be displayed only during the seasonal period when the sale of produce is available.
15. Temporary sign, special event: Temporary signs containing messages concerning special events to occur on the lot on which the sign is located and to which the general public is invited, subject to the following restrictions:
    a. “Special events” shall not be construed to include common day-to-day operations of the land use on the lot or announcements of sales or services available on the lot.
    b. No more than one (1) such sign may be erected on the lot at any single time.

c. The sign shall not exceed twenty-four (24) square feet in area and six (6) feet in height, and shall be set back from all lot lines a minimum distance of twenty-five (25) feet.
d. No lot shall exhibit special event temporary signs for more than thirty (30) days during any consecutive one-hundred twenty (120) day period.

17. Temporary sign, grand opening: Temporary signs intended to announce the opening of a public or private facility, including a business but excluding a home occupation, subject to the following restrictions:
    a. The sign shall not be displayed for more than thirty (30) days.
    b. No more than one (1) sign may be erected on the lot to which the sign applies.
    c. The sign shall not exceed thirty-two (32) square feet in area.
    d. The sign shall not exceed eight (8) feet in height except where attached to a wall.
    e. The sign shall be located no closer than ten (10) feet from all lot lines.
    f. Wind-blown devices and other devices with moving parts including pennants, spinners and streamers, may be used as part of or in association with such sign.
18. Temporary sign, seasonal celebration: Temporary signs in celebration of a national, local, or religious holiday subject to the following limitations:
    a. Such temporary signs shall not exceed twenty-four (24) sq. ft. in area except in a Residential District, in which case such signs shall not exceed six (6) square feet, and may be illuminated.
    b. A temporary celebration sign shall be not erected prior to sixty (60) days before the holiday date and shall be removed within thirty (30) days following the holiday date.

End of Article 16

Article 17
(RESERVED for FUTURE USE)

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End of Article 17

Article 18
Standards and Regulations for Specific Land Uses

Section 18.1 Purpose and Applicability

A. Purpose: The purpose of this Article is to establish standards and regulations in association with certain land uses to ensure such uses minimize negative impacts upon adjacent land uses and the Township as a whole, and encourage orderly development in coordination with surrounding conditions and in the development site itself. Where deemed beneficial to provide greater clarification of the purpose or character of regulations presented in this Article, some Sections are accompanied by a further defined "purpose" statement.

B. Applicability:

1. Unless otherwise specified, each use addressed in this Article shall be subject to all setback, lot area and other standards of the District in which the use is located according to Table 3-4 of Article 3.
2. Where this Article establishes a standard more stringent than that required elsewhere in this Ordinance, including Table 3-4 of Article 3, the standard of this Article shall apply.
3. Any requirements of this Article regarding application submittal data, plans, and drawings shall be in addition to the data requirements of Article 6, Site Plan Review.
4. Compliance with the standards in this Article does not relieve the owner or operator of a permitted use from complying with requirements of other federal, state, county and local rules and regulations.

Section 18.2 Airport

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. An airport shall not be established on any parcel less than one-hundred eighty (180) acres in area and 1,500 feet in width.
2. No runway shall be located within seven-hundred fifty (750) feet of a lot line.
3. No airport building, storage area or other facility shall be established within one thousand (1,000) feet of an existing dwelling.

B. Additional Standards and Requirements:

1. The lot shall have frontage on at least one (1) paved road classified by the County Road Commission as a primary road according to PA 51 of 1951, and take its access from such road.
2. See Article 18 regarding private landing strips.

Section 18.3 Bed and Breakfast

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage.

B. Additional Standards and Requirements

1. No bed and breakfast use shall be permitted within a subdivision plat or site condominium or on any property where there exists another bed and breakfast within one thousand (1,000) feet, measured as a straight line distance between the structures.
2. The exterior appearance of the bed and breakfast structure shall be of a single-family dwelling character, and shall meet the single family dwelling standards of Section 20.6.
3. Meals may be served to overnight guests only. No separate or additional kitchen facilities shall be provided for use by guests.
4. The number of bed and breakfast bedrooms available for use by guests shall not exceed six (6) and all bedrooms shall be part of the dwelling within which the owner resides. All guest bedrooms shall be a minimum of 100 sq. ft., with an additional fifty (50) sq. ft. for each bedroom occupant beyond the first two (2). Bed and breakfast bedrooms shall not be located in basements or other below ground areas unless such bedrooms meet emergency egress rules and regulations of the building code.
5. No receptions, private parties or activities, for which a fee is paid, shall be permitted except as may be expressly authorized in association with the special land use approval of a bed and breakfast.
6. Lavatories and bathing facilities shall be available to all persons using the premises, at a minimum rate of one (1) toilet and one (1) shower for each two bedrooms available for rent.
7. All parking areas for guests shall be set back a minimum distance of twenty (20) feet from all lot lines and screened to minimize impacts on neighboring properties.

8. The sale or offer for sale of goods is permitted provided such sales area does not exceed one hundred (100) square feet in floor area.
9. A bed and breakfast shall comply with county and state health department rules and regulations regarding food service, and shall comply with the State Construction Code?

Section 18.4 Campgrounds, Private

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. The minimum lot area shall be ten (10) acres and shall have a minimum width of six-hundred (600) feet.
2. All campsites, common use and recreation areas, restrooms, and principal and accessory buildings shall be setback a minimum distance of fifty (50) feet from all lot lines.
3. Maximum lot coverage shall not exceed ten percent (10%).

B. Additional Standards and Requirements

1. No more than one (1) permanent dwelling shall be allowed in a campground, which shall only be occupied by the owner, manager or an employee.
2. A common use area shall be provided at a rate of five hundred (500) square feet per campsite, except that a minimum of ten thousand (10,000) square feet shall be provided.
3. A convenience store may be permitted within a campground as an accessory and subordinate use to the campground where the campground exceeds more than 40 campsites, the approving body determines that the location of such store will significantly discourage use of the store by non-campers, and such use is expressly authorized as part of an approved campground application.
4. Each campsite shall be clearly identified by signs, stakes, markers or other measures.
5. Each campsite shall have a picnic table and if fires are permitted, a designated place for such fires.
6. Access roads shall be a minimum of twenty-two (22) feet in width and any dead-ended access drives shall be provided a minimum sixty (60) foot diameter turn around.
7. There shall be no camping or parking activities within thirty (30) feet of the center line of an access road.
8. Campgrounds shall comply with all rules and regulations of the Michigan Department of Environmental Quality and County Health Department, including provisions pertaining to potable water, shower facilities, restrooms, and maximum capacity of persons per campsite.

Section 18.5 Commercial Stables

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. A commercial stable shall not be established on any lot less than ten (10) acres in area and three-hundred thirty (330) feet in width.
2. Buildings and structures housing animals, and manure storage areas, shall be set back a minimum distance of sixth (60) feet from lot lines and one-hundred fifty (150) feet from buildings on adjacent or nearby lots.
3. No public viewing areas, such as bleachers or designated assembly and viewing areas in association with special events such as shows, exhibitions, and contests, shall be permitted within one hundred (100) feet of a lot line.

B Additional Standards and Requirements

1. A vegetative strip of at least fifty (50) feet wide shall be maintained around all surface waters.
2. The facility shall be constructed and maintained so that manure, dust, and drainage shall not create a nuisance or hazard to adjoining property or uses.
3. Animals shall be confined in a suitable fenced area, or paddock, to preclude their approaching nearer than sixty (60) feet to any existing dwelling on adjacent premises.

Section 18.6 Convalescent and Nursing Homes

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage.

B. Additional Standards and Requirements

1. The lot shall have frontage on at least one (1) paved road classified by the County Road Commission as a primary road according to PA 51 of 1951, and take its access from such road.
2. There shall be provided easily accessible and usable outdoor areas for walking, sitting, and general relaxation, in an minimum amount of one hundred (100) square feet per patient bed according to design capacity, but in no case shall the open space area be less than ten thousand (10,000) square feet. No single designated outdoor area shall be less than five-hundred (500) square feet in area.

Section 18.7 Day Care Centers

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage.

B Additional Standards and Requirements

1. Day care center buildings authorized in Conservation or Residential Districts shall be of an overall residential character including exterior construction materials and general architecture. The property, including landscape and structural elements, shall be maintained in a manner that is consistent with the character of the area.
2. No approval shall be granted prior to the applicant's receipt of approval from the Michigan Office of Child and Adult Licensing unless required otherwise by law.

Section 18.8 Day Care Facility, Group Home

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage.

B Additional Standards and Requirements

1. A group home day care facility shall not be located closer than fifteen-hundred (1,500) feet to any of the following facilities as measured along road frontage maintained by the County Road Commission:
   a. Another group home day care facility licensed by the State of Michigan.
   b. An adult foster care group home licensed by the State of Michigan.
   c. A facility offering substance abuse treatment and rehabilitation services to seven (7) or more people which is licensed by the State of Michigan.
   d. A community correction center, resident home, halfway house or other similar facility which houses an inmate population under the jurisdiction of the Department of Corrections.
2. The property, including landscape and structural elements, shall be maintained in a manner that is consistent with the character of the surrounding area. No play equipment shall be located in the front yard.
3. At least one (1) off-street parking space shall be provided for each non-family employee of the group day care home in addition to the parking normally required for the dwelling. A driveway may be used for this purpose. An off-street drop-off area is to be provided with the capability to accommodate at least two (2) automobiles in addition to the parking required for non-family employees of the dwelling and the parking normally required for the residence.
4. Hours of operation shall not exceed sixteen (16) hours in a twenty-four (24) hour period.
5. No approval shall be granted prior to the applicant's receipt of approval from the Michigan Office of Child and Adult Licensing unless required otherwise by law.
6. All operations and outdoor play areas shall be enclosed with fencing, a minimum of four (4) feet high, shall comply with the rules and regulations of Public Act 116 of 1973, as amended.

Section 18.9 Extraction Operations

A. Additional Materials to be Submitted: In addition to the information required by Article 6 for site plan review, the following information shall be provided:

1. Location of all buildings within two hundred (200) feet of any activity proposed for the site.
2. Detailed proposal as to method of operation, what type of machinery or equipment will be used, estimated period of time that such operation will cover, daily operating hours, and all haul roads and truck entrance locations to be used.
3. Detailed description of the material to be extracted, the anticipated average amount of material to be extracted each year, the total estimated area to be devoted to extraction, the planned progression of extraction across the site and corresponding time frames, the location of each principal phase, number of acres included in each phase, and the estimated length of time to complete extraction of each phase.
4. Proposed plans for fencing.
5. Depth to and directional flow of groundwater, and analysis data documenting the extent to which the extraction operation may undermine surface and ground water conditions of nearby properties such as in the case of lowering water levels of surface water bodies and ground water resources from which wells rely.
6. Proposed side slopes and depths for all portions of the extracted area, including interim and final slopes.
7. Detailed storm water management plans that delineate how runoff is to be removed from extraction areas including the delineation of proposed interim and finished grading and revegetation, directional flow of swales and other drainage courses, settling ponds and retention/detention ponds, points of discharge of runoff, the avoidance of stagnant ponding, and measures to minimize erosion and sedimentation of existing on-site and off-site water bodies.
8. The proposed location of any buildings, storage areas, stockpiling areas, and sorting or crushing equipment as appropriate.
9. A detailed reclamation plan that complies with the following:
    a. Describes in detail the intended reclamation use of the site upon completion of extraction activities, the spatial arrangement of proposed reclamation uses, and preliminary final grading of the site.
    b. Depiction of finished, stabilized, side slopes, and provisions for revegetation and stabilization.
    c. The inclusion of a landscape plan, including an inventory of plant/tree species to be used, sizes, and locations, and the manner in which vegetation shall be restored upon the site including appropriate seeding of grasses or the planting of trees and shrubs to establish a permanent vegetative cover on the land surface to minimize erosion. The landscape plan shall provide that a layer of arable topsoil shall be spread over the excavated area, except exposed rock surfaces, to a minimum depth of four (4) inches in accordance with an approved grading plan and intended reclamation use.
    d. Final slopes no greater than a 3:1 (horizontal:vertical) ratio.
    e. No noxious, flammable or toxic backfill and grading materials shall be used.
    f. Provides for the removal of all rubbish, debris, structures, buildings, and equipment within 365 days of the termination of extraction operations.
    g. The inclusion of a reclamation schedule that provides, in part, that reclamation shall be carried out progressively so as to ensure that no active extraction area exceeds five (5) acres in area, unless expressly authorized otherwise upon a finding that no practical alternatives exist and the public health, safety and welfare shall be ensured.

B. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. Minimum lot area shall be twenty (20) acres.
2. Notwithstanding any other minimum setbacks required by this Ordinance, all extraction activities, including alteration of existing topographic conditions, fixed and temporary buildings and equipment, washing and stockpiling of materials, truck parking and truck storage areas, shall be set back a minimum distance of one hundred (100) feet from all lot lines and two hundred (200) feet from an existing dwelling.

C. Additional Standards and Requirements:

1. Rumble strips shall be provided along access drives to discourage the tracking of dirt onto adjacent roads. Public streets within 1,000 feet of the exit of the extraction site shall be kept reasonably clear on a daily basis of mud, dirt and debris from vehicles exiting the site.
2. Measures shall be employed as necessary to prohibit windborne dust, sand, or other materials from leaving the extraction site, including the seeding of exposed earth, use of berms and vegetative screens, and the application of chemicals to non-vegetated areas provided such chemicals are biodegradable and non-toxic.
3. No topsoil shall be removed from the extraction site except as may be delineated on an approved site plan or otherwise authorized as part of an approval of the extraction operation.
4. Extraction areas shall be graded in a fashion which will not cause water to accumulate in stagnant pools.
5. Truck or heavy vehicle traffic related to extraction operations shall use major thoroughfares for access to the greatest extent feasible. The applicant shall make an adequate financial guarantee with the County Road Commission to address any additional road maintenance and/or improvements necessitated by extraction operation truck traffic.
6. Extraction operations, including crushing, washing, processing, loading and transport operations, shall commence no earlier than 7:00 a.m. and cease no later than 7:00 p.m. on weekdays and, on Saturdays between May 1st through November 30th, shall commence no earlier than 7:00 a.m. and cease no later than 5:00 p.m. Extraction operations shall not occur on Sundays, Christmas Day, and Thanksgiving Day. A modification of these limitations may be made by the special land use approving body upon a finding that specific conditions are present or are to be established that support more lenient limitations.
7. All temporary structures shall be removed from the premises upon completion of the extraction activity unless said structures are of sound construction and are compatible with the approved reclamation plan.
8. The site shall be rehabilitated progressively as extraction areas are worked or abandoned so that they shall be in a condition of being entirely lacking in hazards and be inconspicuous, and blended with the general surrounding ground form. Reclamation of the site concurrent with extraction activities shall be undertaken to the extent that the reclamation activities will not interfere with the excavating activity or if the extraction activity will damage the reclaimed areas. Extraction areas shall be reclaimed pursuant to the approved reclamation plan. The excavator shall be required to post an acceptable performance guarantee pursuant to Section 2.6 of this Ordinance to address the reclamation costs for each five (5) acres of land to be disturbed or fraction thereof. Extraction activities shall not be initiated on any location of the site until such performance guarantee has been posted for that area of the site.
9. Any expansion of an extraction operation beyond that area covered by a valid zoning permit shall be subject to the special land use application provisions of Article 7.
10. Any performance bond that may be required according to Section 2.6 may cover anticipated yearly or other periodic inspections.
11. All areas which are subject to current extraction operations, or past extraction operations but which have yet to be reclaimed or otherwise exhibit slopes in excess of 3:1 (horizontal to vertical), shall be fenced to a minimum height of six (6) feet. Any gates made part of such fencing shall be secured at all times when the site is unattended by the operator. Such fencing shall include signs no less than three (3) square feet in area and spaced no greater than two hundred (200) feet apart, with the following or similar notice: “Warning – Danger, Excavation in Progress.”
12. No extraction activities shall occur within any 100-year floodplain as delineated by the Federal Emergency Management Authority.

D. Abandonment/Termination of Use:

1. An operator shall submit written notice to the Zoning Administrator of the abandonment of an extraction operation within six (6) months of such abandonment.
2 When extraction operations have ceased for more than 365 consecutive days or when, by examination of the premises or other means, the Zoning Administrator determines that the extraction operation has been abandoned, the Zoning Administrator shall give the owner written notice of the intent to declare the extraction operation abandoned. Within thirty (30) days following receipt of such notice, the owner shall have an opportunity to submit evidence that the use of the extraction operation, or portion thereof, has not been abandoned.
3. The Planning Commission shall then render a decision as to the extent to which extraction operations may continue or the operation shall be declared as abandoned. Upon a declaration of abandonment, the owner shall complete all provisions of the approved reclamation plan not otherwise completed to

date, within six (6) months of such declaration, except upon a finding by the Planning Commission that there exist special or unique conditions that support a different time frame for completion.

4. Where an extraction operation has been declared abandoned, a new application and permit shall be necessary before additional extraction activities may occur.

E. Time Limitation on Permit: A permit for an extraction operation shall be valid for five (5) years. No less than every five (5) years from the issuance of such permit, the applicant shall submit project status documents delineating the status of extraction operations to date including the current limits of extraction, reclamation efforts undertaken and completed to date, updated phasing plans for the remainder of the approved extraction area, and the status of any alleged violations and corrective actions. The Planning Commission shall consider such documents and the recommendation of the Zoning Administrator, and upon finding such documents are satisfactory, the Planning Commission shall renew the permit for an additional five (5) years. The Planning Commission shall not deny the renewal of such permit if the extraction operation is in compliance with the approved zoning permit and all conditions made part of the permit.

F. No Very Serious Consequence: When reviewing and taking action on a special land use application for an extraction operation, and in addition to reviewing such application according to the general special land use approval standards of Section 7.6, such application shall also be reviewed to determine whether adequate documentation has been submitted demonstrating that "no very serious consequences" will result by the approval of such application. The determination of "no very serious consequence" may be based on any of the following factors as may be applicable:

1. The relationship of extraction and associated activities with existing land uses.
2. The impact on existing land uses in the vicinity of the property.
3. The impact on property values in the vicinity of the property and along the proposed hauling route serving the property, based on credible evidence.
4. The impact on pedestrian and traffic safety in the vicinity of the property and along the proposed hauling route serving the property.
5. The impact on other identifiable health, safety, and welfare interests in the Township.
6. The overall public interest in the extraction of the specific natural resources on the property.

Section 18.10 Foster Care Facility, Group Home

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage.

B Additional Standards and Requirements:

1. Any outdoor children's' play area shall be enclosed with fencing, a minimum of four (4) feet high.
2. The property, including landscape and structural elements, shall be developed and maintained in a manner that is consistent with the general character of residential properties within the general area.
3. An off-street drop-off area is to be provided with the capability to accommodate at least two (2) automobiles in addition to the parking required for employees.
4. The facility shall provide a loading/unloading area of adequate dimensions near a barrier-free entrance to the facility.
5. No approval shall be granted prior to the applicant's receipt of a license from the Michigan Office of Child and Adult Licensing unless required otherwise by law.
6. There shall be compliance with the rules and regulations of Public Act 116 of 1973, as amended.

Section 18.11 Golf Courses, Country Clubs, and Driving Ranges

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. The minimum lot area shall be twenty (20) acres.
2. All principal and accessory buildings, driving stations, parking areas, temporary sanitary facilities and trash receptacles, and outdoor swimming pools and surrounding deck areas, shall be set back a minimum distance of seventy-five (75) feet from all lot lines.

B Additional Standards and Requirements

1. The design of buildings shall be of an overall residential or lodge character and exterior materials shall be primarily wood, siding, stone or brick.
2. Fairways and driving ranges shall have sufficient width and shall be oriented in such a manner and set back a sufficient distance to prevent golf balls from being hit outside the perimeter of the golf course.

Where necessary, buffering conditions shall be in place to minimize the safety threats upon adjacent land uses due to errant golf balls.

3. Accessory uses may include managerial facilities, maintenance sheds, restrooms, lockers, restaurants and drinking establishments, racket sports, swimming facilities, clubhouses, and other uses having a customary accessory relationship with a country club, provided all standards of this Ordinance are met and the approving body determines that such uses are clearly accessory and subordinate in character to the principal use of the lot as an outdoor recreational facility.
4. A hydrogeological study shall be completed and submitted to document the anticipated impact of the golf course on groundwater supply. This study shall inventory and analyze well logs from surrounding properties, giving consideration to the depth of the wells and quality of water. The study shall further estimate the quantity of water that will be used on a daily basis during the peak watering periods and shall evaluate the impact of watering operations on surrounding wells. The study shall be performed by an engineer or hydrologist licensed in the State of Michigan.
5. Detailed plans for hazardous materials storage shall be provided. Buildings in which hazardous materials are stored shall be designed to contain spills, shall not have floor drains that discharge into a septic system or other pathway to the groundwater, shall be lockable, and shall be kept locked. An inventory manifest of stored hazardous materials must be posted at the entrance of the storage building and filed with the Township Clerk. Plans for emergency containment and clean-up shall also be provided.

Section 18.12 Hospitals

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage.

B Additional Standards and Requirements

1. The lot shall have frontage on at least one (1) paved road classified by the County Road Commission as a primary road according to PA 51 of 1951, and take its access from such road.
2. Ambulance and emergency entrance areas shall be visually screened from the view of adjacent residential uses and residentially-zoned land by a structure or masonry wall of six (6) feet or more in height.

Section 18.13 Junkyards

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. The lot shall have a minimum area of twenty (20) acres and a minimum width of three-hundred thirty (330) feet.
2. All storage, dismantling, or other work on junk shall be set back at least one-hundred (100) feet from the front lot line, any other public right-of-ways, and any lot line adjacent to a Conservation or Residential District.

B Additional Standards and Requirements

1. The lot shall have frontage on at least one (1) paved road classified by the County Road Commission as a primary road according to PA 51 of 1951, and take its access from such road.
2. A solid fence or wall enclosure at least eight (8) feet in height, but no greater than ten (10) feet in height, shall be provided around all sides of the area used to store, dismantle, or otherwise work on junk. Such fence or wall shall be of sound construction, painted or otherwise finished neatly and inconspicuously and maintained in such manner. All activities shall be confined to within the enclosed area including storage or stockpiling of materials; disassembly of materials, parts, and vehicles; and the storage or parking of all equipment and operative and inoperative vehicles. There shall be no stocking of material above the height of the enclosure.
3. No junkyard shall be used for the disposal of household, commercial, or industrial garbage, trash, hazardous materials, or any waste materials or products.
4. Outdoor burning is prohibited.
5. The hours of outdoor operation shall be limited to between 6:00 a.m. and 6:00 p.m. on weekdays and 9:00 a.m. and 5:00 p.m. on weekends.
6. All roads, driveways, parking lots, and loading and unloading areas within any junk yard shall be paved, watered, or chemically treated so as to limit the nuisance caused by wind-borne dust.
7. The operation shall be licensed by the Michigan Secretary of State.

8. No inoperable vehicle shall be maintained on the site for more than three (3) days except where all fluids and other hazardous materials in such vehicle, including but not limited to batteries, fuels, oils, and coolants, are fully drained. Such fluids shall be disposed of in accordance with all local, county, state and federal regulations. The leaking of such materials onto the ground is prohibited.
9. Any materials listed on the Michigan Critical Materials Register (gasoline and solvents) require secondary containment and a Pollution Incident Protection Plan filed with the Michigan Department of Environmental Quality.
10. A junkyard shall comply with all applicable state regulations, including the acquisition of necessary permits, and shall comply with the Clare County Solid Waste Management Plan.

Section 18.14 Kennels

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. A kennel shall not be established on any lot less than five (5) acres in area and three-hundred (300) feet in width.
2. Buildings where animals are kept, runs, and group exercise areas shall not be located closer than one-hundred (100) feet to a lot line and no closer than five-hundred (500) feet to an existing dwelling on another lot.

B Additional Standards and Requirements

1. The lot shall be kept in a clean and sanitary manner to prevent the accumulation of flies, fleas, the spread of disease or offensive odor. The site plan application materials shall document the manner in which animal stalls are to be constructed and animal waste is to be disposed, and measures to be taken to protect against odors, flies, fleas, and the spread of disease.
2. All animals shall be currently licensed as provided by law and maintained in a healthful and careful manner, and all kennel operations shall comply with all applicable county, township, state and federal regulations.
3. Kennel buildings used to house animals shall have concrete floors throughout and shall be fully enclosed, heated, ventilated, and insulated in such a manner that animal noises are minimized.
4. Habitual barking or unusual noise from the kennel which results in a nuisance to neighboring land owners or residents is prohibited.
5. Outdoor runs, pens or exercise yards shall not be used between the hours of 9:00 p.m. and 7:00 a.m.
6. Animals shall be kept confined and not allowed to run at large on the property except as part of supervised training.
7. A separate and independent septic system shall be installed to collect animal waste except upon documentation from the County Health Department that the Department has approved the use of an existing system to serve the kennel. The appropriate location, capacity and sizing of a separate and independent septic system shall be in accordance with Department rules and/or recommendations.

Section 18.15 Mini/Self Storage Facilities

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage.

B Additional Standards and Requirements

1. No storage of hazardous, toxic, or explosive materials shall be permitted at the facility. Signs shall be posted at the facility describing such limitations.
2. There shall be a minimum of thirty-five (35) feet between storage buildings for driveway, parking, and fire lane purposes. Where no parking for loading or unloading is permitted within the building separation areas, said building separation need only be twenty (20) feet. Traffic direction and parking shall be designated by signaling, signs and/or painting.
3. No retail, wholesale, fabrication, manufacturing, or service activities may be conducted from storage units.
4. Storage units shall not contain more than five-hundred (500) square feet each.
5. All storage shall be within the enclosed building area unless specifically provided for otherwise as part of an approved site plan, as in the case of the storage of recreational vehicles. No outdoor storage shall occur within a front yard and no outdoor storage shall occur within fifty (50) feet of a side and rear lot line.

Section 18.16 Motels and Hotels

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage.

B Additional Standards and Requirements

1. Each unit shall contain at least a furnished bedroom and bath and a minimum gross floor area of two-hundred fifty (250) square feet.
2. Motels and hotels shall provide customary services such as cleaning service, linen service, and telephone and/or desk service.
3. Accessory services including meeting rooms and restaurants are permitted provided such uses are contained within the motel building, comply with the provisions of this Ordinance including adequate off-street parking in addition to the motel itself, and such uses are made part of the zoning permit application for which approval is granted.
4. A caretaker's residence may be established within the motel only.

Section 18.17 Multiple Family Developments

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. The portion of a building within fifty (50) feet of a lot line shall not exceed twenty-five (25) feet in height.
2. Buildings shall be a minimum twenty-five (25) feet from the edge of a parking lots and access drives not otherwise comprising a public road right-of-way.

B Additional Standards and Requirements

1. The minimum distance between any two buildings on the lot shall be equal to fifty (50) feet except that the minimum distance between any two buildings on the lot that are generally arranged end-to-end shall be the height of the taller building but no less than twenty (20) feet.
2. There shall be provided easily accessible and usable open space in the development in an amount of ten percent (10%) or more of the site area or one hundred (100) square feet per dwelling unit, whichever is greater, but in no case shall less than ten thousand (10,000) square feet be provided. No single designated open space shall be less than five-hundred (500) square feet in area. Such open space shall be available for recreation and leisure.
3. In no case shall a residential building be more than one hundred fifty (150) feet from the parking lot from which it is served.
4. Accessory buildings, structures, and uses that are clearly customary and incidental to the functioning of the development are permitted, including business and administrative offices, laundry facilities and auxiliary storage for tenants, and recreation buildings.
5. All access drives shall have a minimum pavement width of twelve (12) feet for one-way streets and twenty-four (24) feet for two-way streets.
6. The minimum floor area for multiple family dwelling units shall be as follows:
   a. Efficiencies: 350 sq. ft. of heated living area.
   b. One bedroom units: 500 sq. ft. of heated living area.
   c. Two bedroom units: 700 sq. ft. of heated living area.
   d. Three bedroom units: 800 sq. ft. of heated living area.
   e. Four or more bedroom units: 880 sq. ft. of heated living area, plus 80 sq. ft. of heated living area for each additional bedroom in excess of the fourth bedroom.

Section 18.18 Open Air Businesses (On-Site Sales of Vehicles, Landscape Supplies, Outdoor Furniture, and Similar Outdoor Sales)

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, but in no case shall the lot be less than 30,000 sq. ft. in area and one-hundred (100) feet in width.

B. Additional Standards and Requirements:

1. All outdoor sales, storage or display areas shall include a building of more than two hundred (200) square feet in area, which functions in association with the business and includes potable water and sewage disposal facilities in compliance with the County Health Department.
2. All outdoor sales, storage and display areas shall comply with the minimum setback standards for the building on the premises.
3. Outdoor broadcasting of voice or music is prohibited.

4. The storage of soil, fertilizer or similar loosely packaged materials shall be sufficiently contained to prevent any adverse effect upon adjacent properties.
5. In the case of vehicle sales or service, the following additional restrictions shall apply:
   a. All repair, assembly, disassembly or maintenance of vehicles shall occur within a closed building except minor maintenance such as tire and wiper replacement but excluding oil changes.
   b. All vehicle display and storage areas shall be asphalt or concrete paved except where the approving body determines such paving is not necessary due to the prohibition of public access to such areas, the limited use of such areas on a day-to-day basis, and/or other reasons the approving body finds applicable.

Section 18.19 Open Space Preservation Communities

A. Purpose: It is the purpose of Open Space Preservation Communities (OSPC) to provide opportunities for residential development which, because of the more flexible standards available to OSPCs under this Section and according to Section 506 of the Michigan Zoning Enabling Act, more effectively encourage the preservation of open spaces and natural resources including woodlands, wetlands and sensitive environmental areas, and the Township's rural character. The regulations of this Section intend to accomplish these purposes, in part, by providing for the grouping or clustering of new homes on smaller lots than typically required by the District within which the OSPC is to be located, so that the remainder of the site can be preserved as open space.

B. The following site and developmental requirements shall apply:

1. Uses: Uses within an OSPC shall be limited to those dwelling types authorized by the District in which the OSPC is located and customary accessory uses to dwellings, in addition to the open space as required by this Section.
2. Number of Lots/Dwellings: The number of dwellings and lots authorized in an OSPC shall be the number attainable by the Conventional Plan according to subsection (C)(2) below plus an additional twenty-five percent (25%).
3. Minimum Lot Area and Width
   a. Lot Area: The minimum lot area shall be that which is necessary for acquisition of all required public health permits and approvals including potable water and on-site sewage disposal where such public utilities are not available. Where such public utilities are provided, the minimum lot area shall be no less than thirty-five percent (35%) of the normally required lot area of the respective District.
   b. Lot width: Minimum lot widths shall be of such dimension so that no lot has a depth greater than four (4) times its width, but in no case shall a lot be less than sixty-six (66) feet in width.
4. Setbacks
   a. The following front, side and rear yard setbacks shall apply except that in no case shall a building be located within seventy-five (75) feet of the perimeter lot line of the OSPC. Where the approving body finds the natural or proposed topography, vegetation, or other conditions provide adequate screening and buffering within the context of surrounding development patterns, the above referenced setbacks may be reduced by no greater than fifty percent (50%).
      1) Front yard: twenty-five (25) feet.
      2) Side yard: ten (10) feet.
      3) Rear yard: twenty (20) feet.
   b. In addition to subsection (a) above, a minimum (75) foot setback shall be maintained along lakes, ponds, rivers, streams, and wetlands, except that this setback shall not prohibit trails, boardwalks, observation platforms or other similar structures that enhance passive enjoyment of the site's resources within the setback.
5. Guarantee of Open Space: An OSPC shall include permanently dedicated open space. Such required open space shall remain perpetually in an undeveloped state by means of a conservation easement, plat dedication, restrictive covenant, or other legal means that runs with the land, acceptable to the approving body. Further subdivision of open space land or its use for other than conservation, agricultural uses, or preservation in an undeveloped state, is prohibited. The applicant shall guarantee to the satisfaction of the approving body that all open space portions of the development will be maintained in perpetuity and in the manner approved. Documents shall be presented that bind all successors and future owners in fee title to commitments made as a part of the proposal. For the purposes of this Section, "undeveloped state" shall be construed to mean a natural state preserving natural resources, natural features, or scenic or wooded conditions; agricultural use; open space; or a similar use or condition. Land in an undeveloped state does not include a golf course but may include a recreational trail, picnic area, children's play area, greenway, or linear park. For the purposes of this Section, "greenway" shall be construed to mean a contiguous or linear open space, including habitats,

wildlife corridors, and trails, that link parks, nature reserves, cultural features, or historic sites with each other, for recreation and conservation purposes. Land in an undeveloped state may be, but is not required to be, dedicated to the use of the public.

a. The open space conveyance shall:
   1) Indicate the proposed allowable use(s) of the dedicated open space.
   2) Require that the dedicated open space be maintained by parties who have an ownership interest in the open space, and establish a funding mechanism to ensure the same.
   3) Provide for maintenance to be undertaken by the municipality in which it is to be located, in the event that the dedicated open space is inadequately maintained or is determined by the Planning Commission to be a public nuisance, with the assessment of costs upon the property owners.

6. Open Space Preservation Area, Character, and Priorities
   a. A minimum of fifty percent (50%) of the OSPC parcel shall be designated as permanent open space. However, in no case shall the required open space area be characterized by year-round submerged land such as ponds, lakes, and year-round submerged wetlands. In addition, no more than fifty percent (50%) of the required open space area shall be characterized by wetlands not otherwise submerged year-round.
   b. Open space shall be located on the parcel to meet the following objectives:
      1) Greatest preservation priority shall be placed upon water courses and bodies, MDNRE-regulated wetlands, floodplains, and mature woodlands. Other on-site natural resources shall also be considered in the location of open spaces and overall design of the project including farmland, tree lines, wetlands not regulated by the MDNRE, and panoramic rural views.
      2) To promote the effective preservation of the existing character along the public road frontages that the OSPC abuts.
      3) To ensure the open space area is of a unified character comprised predominantly of large contiguous areas, except where special conditions may exist that support a more fragmented configuration of the open space.
7. Fire Protection: Fire protection measures shall be provided in all OSPCs that include a potable water system, and in OSPCs that are generally characterized by lots of approximately twenty thousand (20,000) sq. ft. or less in size and are more than three (3) miles from the nearest public fire department serving the location of the OSPC. Fire protection measures shall include an adequate on-site source of water for use by the local fire department and associated infrastructure to enable the local fire department to effectively respond to a fire emergency.
8. Vehicular and Pedestrian Access and Circulation
   a. All dwellings within an OSPC shall gain access from an interior road within the OSPC.
   b. A non-motorized circulation system may be required along one or both sides of the roads of the OSPC and/or through other portions of the OSPC, to ensure safe non-motorized travel. The circulation system shall be coordinated with existing or planned pedestrian ways, roads, and activity centers in the area. Non-motorized circulation networks shall encourage ease of access from residences to the designated open space areas.
   c. Access points or paths shall be provided to afford pedestrian access to designated open space and common areas. These access points shall link the open space to the road system, sidewalks, or the remainder of the development.
   d. All public roads shall conform to the requirements and standards of the County Road Commission. All private roads shall conform to the requirements and standards of this Ordinance.

C. Special Application and Approval Requirements: OSPCs are subject to site plan approval according to Article 6 (Site Plan Review) in addition to the following:

1. Unified Control: The application shall demonstrate that the proposed development shall be under single ownership or control, such that there is a single person or entity having proprietary responsibility for the full completion of the project. The applicant shall provide sufficient documentation of ownership or control in the form of agreements, contracts, covenants, and/or deed restrictions that indicate that the development will be completed in its entirety as proposed.
2. Conventional Plan: At the time the applicant submits a site plan for the OSPC, the applicant shall also submit a conventional plan which shall illustrate a practical and reasonable manner for developing the project parcel according to the conventional development standards of the District in which it is located including the normally required minimum lot area and width. This plan shall identify the total number of lots and dwellings reasonably attainable. The approving body shall make the final determination as to the number of dwellings and lots reasonably attainable by conventional design. This information shall be used when determining the permissible number of dwellings and lots for an OSPC proposal.

a. The conventional plan referenced in subsection (2) above need not be an engineered set of construction drawings, but shall be of such detail and clarity to demonstrate conformity with all state, county and township regulations including, but not limited to, potable water and sewage disposal, storm water management including necessary detention and retention ponds, and general road design and construction. The conventional plan shall demonstrate the feasibility of the proposed plan both in regard to its construction and its negligible impact upon sensitive environmental resources including wetlands and drainage courses and, in doing so, shall include the following: natural features such as wetlands, woodlands, flood plains, streams, rivers, county drains, lakes, ponds, and topography (at two-foot intervals), and man-made features such as existing roads, structures, utilities, easements, and adjacent land use conditions. A conventional plan shall not be considered if it does not provide the necessary level of detail or information to assess such conventional plan for the purposes of subsection (2) above.

3. Recording of Approval Action/Permit Issuance:
   a. The applicant shall record an affidavit with the County Register of Deeds containing the full legal description of the project site, specifying the date of final approval, and declaring that all improvements will be carried out in accordance with the approved OSPC plan unless a change is approved by the Planning Commission. In addition, all deed restrictions and easements shall be duly filed with the Register of Deeds of the County. Copies of recorded documents shall be presented to the Zoning Administrator.
   b. Upon receipt of the recorded documents, the Zoning Administrator shall issue a zoning permit for the OSPC.
   c. Separate zoning permits are required for individual dwellings and buildings on OSPC lots. No such permit shall be issued prior to the completion of all site modifications as approved under subsection (b) above, unless expressly provided otherwise by the Planning Commission during site plan deliberations.

Section 18.20 Private Landing Strips

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. Runways, hangers, maintenance buildings, and any other structures associated with the landing strip shall be located a minimum of one-hundred fifty (150) feet from all lot lines.

B Additional Standards and Requirements

1. Runways shall be twelve hundred (1,200) feet in land length and fifty (50) feet in width, with a clear approach in each direction of 10:1 (horizontal to vertical) for a distance of 10,000 feet, except where the applicant can demonstrate that the intended type of aircraft to be used has standard operational characteristics that make such standards excessive such as in the case of “ultra-light” aircraft.
2. Approval of landing strips shall not be made prior to the receipt of the Federal Aviation Authority's review of the proposed landing strip.

Section 18.21 Sexually Oriented Businesses

A. Purpose: There is convincing documented evidence that sexually oriented businesses, because of their very nature, can facilitate and support undesirable and detrimental patterns of activity in their vicinity. These impacts are incompatible with activities and uses in residential areas, near educational, recreational, and religious facilities, and among local businesses and their immediate neighborhood. Such impacts can be exacerbated when such businesses locate in close proximity to each other or near establishments serving alcoholic beverages. Impacts contribute to blight and downgrading the quality of life in the adjacent area. The Township desires to prevent adverse effects and thereby protect the health, safety, and welfare of the citizenry, preserve the property values and character of surrounding neighborhoods and deter the spread of blight. It is not the intent of this Ordinance, including this Section, to suppress any activity protected by the First Amendment of the United States Constitution or the Michigan Constitution, but to enact content neutral provisions that address the adverse effects of sexually oriented businesses. It is the purpose of this Section to regulate sexually oriented businesses and related activities to promote the health, safety, and general welfare. It is not the intent of this Section to condone or legitimize the distribution of sexually oriented materials.

B. Definitions: For the purposes of this Section, the following terms, phrases and definitions shall apply:

1. Adult Bookstore: A commercial establishment that, as a principal business purpose, offers for sale or rental or for any form of consideration any one or more of the items set forth in subsection (a) or (b). The sale of such materials shall be deemed to constitute a "principal business purpose" of an establishment if it comprises ten percent (10%) or more of sales volume or occupies ten percent (10%) or more of the display area or visible inventory within the establishment.
   a. Books, magazines, periodicals or other printed matter or photographs, films, motion picture video or other video reproductions, slides, or other visual representations or media, that depict or describe specified anatomical areas or specified sexual activity.
   b. Instruments, devices, or paraphernalia that are designed for use in connection with specified sexual activities.
2. Adult Live Entertainment Center: A nightclub, bar, restaurant, or similar commercial establishment that features one (1) or more of the following:
   a. Persons who appear in the state of nudity.
   b. Live performances that are characterized by the exposure of specified anatomical areas or by specified sexual activities.
   c. Films, motion pictures, video reproductions, slides, and other photographic reproductions or visual media that are characterized by the depiction or description of specified sexual activities or specified anatomical areas.
3. Adult Motel: A hotel or motel or similar commercial establishment that provides or permits one (1) or more of the following:
   a. Accommodations to the public for any form of consideration and provides patrons with closed-circuit television (as distinguished from commercial cable services) transmissions, films, motion pictures, videos, slides, or other photographic reproductions or visual media that are characterized by the depiction or description of specified sexual activities or specified anatomical areas.
   b. Sleeping rooms for rent for a period of time that is less than twelve (12) hours.
   c. The sub-renting of a sleeping room for a period of time that is less than twelve (12) hours by the tenant or occupant of the room.
4. Adult Motion Picture Theater: A commercial establishment that shows films, motion pictures, videos, slides, or other photographic reproductions or visual media, that depicts or describes specified anatomical areas or specified sexual activities, including commercial establishments that offer individual viewing booths. This phrase shall not apply to a motel or hotel, as defined in this Ordinance, which offers for a fee the viewing of movies within a customer's room including movies that depict specified anatomical areas or specified sexual activity.
5. Adult Sexual Paraphernalia Store: An establishment having, as part of its stock in trade, paraphernalia designed or usable for sexual stimulation or arousal.
6. Adult Theater: A theater, concert hall auditorium, or similar commercial establishment that features a person or persons who appear in a state of nudity or live performances that are characterized by exposure of specified anatomical areas or specified sexual activities.
7. Escort: A person who, for any form of consideration and regardless of who pays that consideration, agrees to act or offers to act as a companion or date for another person, or who agrees or offers to privately model lingerie or to privately perform a strip tease for another person.
8. Escort Agency: A person or business association who furnishes, offers to furnish, or advertises to furnish escorts as one of its primary business purposes for a fee, tip or other consideration.
9. Manager's Station: A designated area from which a premises is managed or supervised.
10. Massage Parlor: Any establishment having a fixed place of business where massages are administered for a fee or other consideration including but not limited to massage parlors, sauna baths, and steam baths. This definition shall not be construed to include a hospital, nursing homes, medical clinic, or the office of a physician, surgeon, chiropractor, osteopath, or physical therapist duly licensed by the State of Michigan, nor barber shops or beauty salons in which massages are administered only to the scalp, face, neck, or shoulders. This definition shall not be construed to include a nonprofit organization operating a community center, swimming pool, tennis court, or other educational, cultural, recreational, and athletic facilities for the welfare of the residents of the area, nor practices of massage therapists who meet two (2) or more of the following criteria:
    a. Proof of graduation from a school of massage licensed by the State of Michigan.
    b. Official transcripts verifying completion of at least three hundred (300) hours of massage training from an American community college or university; plus three (3) references from professional massage therapists who are members of a massage association referred to in this section.

c. Certificate of professional membership in the American Massage Therapy Association, International Myomassethics Federation, or other recognized massage association with equivalent professional membership standards.
d. A current occupational license from another state.

11. Nude Model Studio: Any place where a person who displays specified anatomical areas is provided to be observed, sketched, drawn, painted, sculpted, photographed, or similarly depicted by other persons who pay money or any form of consideration, but does not include the following:
    a. An educational institution funded, chartered, or recognized by the State of Michigan.
    b. Any modeling session for a local, nonprofit organization that is not open to the public or to any persons other than members of the organization, that is for the purpose of instruction in the artistic depiction in two (2) dimensional or three (3) dimensional media of the human form, during which no specified sexual activities occur and during which the model remains in a fixed pose.
12. Open Dance Hall: An establishment where open dancing by patrons is available during at least four (4) days per week with or without partners furnished by the establishment.
13. Public Nudity or State of Nudity: Knowingly or intentionally displaying in a public place, or in any other place for payment or promise of payment by any person, including, but not limited to payment or promise of payment of an admission fee, any individual's genitals or anus with less than a fully opaque covering, or a female individual's breast with less than a fully opaque covering of the nipple and areola. Public nudity does not include any of the following:
    a. A woman's breast feeding of an infant irrespective of whether the nipple is covered during or incidental to the feeding.
    b. Any display of any part of the anatomy occurring as part of the regular curriculum of an educational institution that is funded, chartered, or recognized by the State of Michigan.
14. Sexual Encounter Center: A business or commercial enterprise, except that which is part of the practice of and under the supervision and control of a physician, psychologist or psychiatrist licensed to practice in Michigan, that, as one of its principal business purposes, offers for any form of consideration one (1) or more of the following:
    a. Physical contact in the form of wrestling or tumbling between persons of the opposite sex.
    b. Activities between male and female and/or persons of the same sex when one (1) or more of the persons are in a state of nudity.
15. Sexually Oriented Business: A business or commercial enterprise engaging in or consisting of an adult bookstore, adult live entertainment center, adult motel, adult motion picture theater, adult sexual paraphernalia store, adult theater, escort, escort agency, massage parlor, nude model studio, open dance hall, or sexual encounter center.
16. Specified Anatomical Areas: Any of the following:
    a. Less than completely and opaquely covered human genitals, pubic region, buttocks, anus, or female breast at or below the top of the areola.
    b. Human male genitals in a discernibly turgid state even if completely and opaquely covered.
17. Specified Sexual Activities: Any of the following:
    a. The fondling or any other erotic touching of human genitals, pubic region, buttocks, anus, or female breasts.
    b. Sex acts, actual or simulated, including intercourse, oral copulation or sodomy;
    c. Masturbation, actual or simulated.
    d. Human genitals in a state of sexual stimulation or arousal.
    e. Excretory functions as part of or in connection with any of the activities set forth in (a) – (d) above.

C. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage.

D. Additional Standards and Requirements

1. No exterior portion of the sexually oriented business, including signage, shall have any words, lettering, photographs, silhouettes, drawings, or pictorial representations of a sexual or explicit manner except to the extent otherwise permitted by the provisions of this ordinance.
2. All doors providing access into or from the interior of an adult entertainment shall be doors that serve the adult entertainment use only and provide direct access to the outdoors such as in the case of a parking lot or other common outdoor area. No adult entertainment use shall be accessed from an indoor common area such as in the case of an enclosed mall or similar access arrangement. These limitations shall not prohibit an adult entertainment use from being part of a building devoted to multiple tenants or uses provided direct access to the adult entertainment use is from the outdoors only and such access serves the adult entertainment use only.

3. Separation Requirements
   a. No sexually oriented business shall be located within four-hundred (400) feet of a Residential District.
   b. No sexually oriented business shall be located within fifteen-hundred (1,500) feet from a church, synagogue or regular place of worship; a public or private elementary or secondary school; a public park; a licensed day-care center or preschool; or another sexually oriented business.
   c. For the purposes of subsection (3)(a) and (b) above, measurement shall be made as a straight line, without regard to intervening structures or objects, from the nearest portion of the building or structure used as part of the premises where a sexually oriented business is conducted to the nearest property line of the premises of a public park, church, synagogue, regular place of worship, public or private elementary or secondary school or preschool, or licensed day care center, or to the nearest boundary of a Residential District or dwelling. In no case shall a sexually oriented business be located in the same building, structure, or portion thereof, containing another sexually oriented business.
   d. A sexually oriented business lawfully operating as a conforming use shall not be rendered a non-conforming use by the subsequent location of a use within the separation requirements of subsection (3)(a) and (b) above.
4. Signs of a minimum 24” by 36” size shall be posted on both the exterior and interior walls of the entrances of the business, in a location that is clearly visible to those entering and exiting the business. In addition, such signs shall be posted in at least two (2) conspicuous places, easily viewed by persons occupying the premises. Such signs shall have lettering that is at least two (2) inches in height, with the following printed statements:
   a. Persons under the age of eighteen (18) years are not permitted to enter the premises.
   b. No alcoholic beverages of any type are permitted within the premises unless specifically authorized by a permit issued under this Ordinance and pursuant to a license duly issued by the Michigan Liquor Control Commission.
5. No merchandise or activities of the establishment shall be visible from any point outside the establishment.
6. The premises shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate every place to which patrons are permitted access, at an illumination of not less than one (1) foot candle measured at floor level. All off-street parking areas shall be illuminated during all hours of operation of the adult entertainment business, and until one hour after the business closes.
7. Hours of operation shall not begin prior to 10:00 a.m. and shall not extend past 12:00 midnight.
8. A sexually oriented business that offers live entertainment shall provide all of the following:
   a. A dressing room for performers with direct access between said dressing area and the performance area or stage, so that the performer may enter the performance area without entering the area from which patrons view the performance. The dressing area for performers shall be separate and not freely accessible from areas of the business accessible to patrons, and such dressing area shall contain hot and cold running water and toilet facilities.
   c. All performances shall occur on a stage elevated at least eighteen inches (18") above the immediate floor level and removed at least six feet (6') from the nearest employee or patron.
   d. At least one (1) employee shall be on duty and situated in a manager's station at all times that any patron is present inside the premises.
   e. The interior of the premises shall be configured in such a manner that there is an unobstructed view from the manger's stations of every area of the premises to which any patron is permitted access for any purpose excluding rest rooms. Said unobstructed view from manager's stations shall remain unobstructed by any doors, walls, merchandise or display racks, or other materials at all times. No patron shall be permitted to access any area of the premises which has been designated on the approved site plan as an area in which patrons shall not be permitted.
   f. Rest rooms shall not contain any video reproduction equipment.

E. Additional Application Requirements: In addition to complying with the submittal requirements of Article 6, Site Plan Review, and Article 7, Special Land Uses, application for a sexually oriented business shall include the following additional information:

1. A diagram of the premises specifying the location of manager’s stations. A manager's station shall not exceed fifty (50) square feet of floor area.
2. The location of all overhead lighting fixtures and illumination levels (in foot candles) at floor level throughout the premises.
3. Any portion of the premises in which patrons are not permitted.

Section 18.22 Shooting Ranges, Hunt Clubs, Hunting Preserves and Similar Uses

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. Minimum lot area shall be forty (40) acres for outdoor firearm shooting activities and shall be twenty (20) acres for outdoor archery-only shooting activities.

B Additional Standards and Requirements:

1. An outdoor shooting range's boundaries shall be fenced with a minimum four (4) foot high fence with signs posted no less than two hundred fifty (250) feet apart along the fence stating "Danger Shooting Range" or similar warning. All vehicular access shall be controlled by locked gates.
2. A site plan for the range, whether indoor or outdoor, shall clearly indicate all safety provisions to prohibit any projectile discharged within the confines of a shooting range from exiting the range.
3. All indoor and outdoor activities, including the shooting of projectiles and storage of projectiles, shall comply with the most current published standards and guidelines of the National Rifle Association and Field Archery Association, as applicable.
4. Outdoor shooting hours shall be one-half (1/2) hour after sunrise or 8:00 a.m., whichever is earlier, to one-half (1/2) hour before sunset, according to sunrise and sunset times published by the National Weather Service. Extended hours are permitted for governmental law enforcement agencies provided the Zoning Administrator is notified at least seven (7) days in advance of the date or dates for the extended hours.
5. Outdoor shooting ranges shall be configured to minimize the potential for lead to enter surface waters, ground water and wetlands. Application materials shall include a lead management plan that shall specify measures to address the containment, migration, removal and disposal of lead.

Section 18.23 Solar Energy Systems

A. Definitions: The following terms, phrases and definitions shall apply for the purpose of this Article.

1. Solar Energy System (SES): A system consisting of a device or combination of devices, structures or parts thereof, that collect, transfer or transform solar radiant energy into thermal, chemical or electrical energy.
2. Small Solar Energy System (Small SES): A solar energy system intended to principally serve a single dwelling unit or business and which relies on roof mounted and/or ground mounted collection systems that have a total cumulative surface area of no more than one-thousand (1,000) sq. ft.
3. Medium Solar Energy System (Medium SES): A solar energy system intended to serve the lot on which the system is located and/or uses and lots located elsewhere, including in association with energy utility providers, and/or which relies on roof mounted and/or ground mounted collection systems that have a total cumulative surface area of more than one-thousand (1,000) sq. ft. but not more than five-thousand (5,000) sq. ft.
4. Large Solar Energy System (Large SES): A solar energy system of a utility-scale intended to principally serve property and persons not located on the lot on which the system is located, and/or which relies on roof mounted and/or ground mounted collection systems that have a total cumulative surface area of more than five-thousand (5,000) sq. ft.
5. Solar Collection Panels: Panels and tiles comprised of semiconductor devices and typically referred to as photovoltaic cells, which collect and convert solar energy directly into electricity. Ground mounted solar collection panels are panels attached to the ground by a pole, metal frame or other similar support structure.

B. Compliance with Table 3-4: Solar energy systems shall comply with the standards of Table 3-4 except as provided otherwise by this Section.

C. Small Solar Energy Systems (Small SES)

1. Small SES Authorization, Review and Approval Procedures: A Small SES is an authorized accessory structure in all districts. Small SES mounted on the ground by way of posts or other support structure mounted on or in the ground, and roof-mounted systems, shall be subject to Zoning Administrator approval. An application for a Small SES need not include a site plan prepared according to Article 6 but the application shall include all information required for a plot plan according to Section 2.4(B), in addition to the delineation of all SES structures and facilities and all structures on adjacent properties within one hundred (100) feet of a shared lot line.
2. Small SES General Provisions: Solar collection panels shall be placed such that concentrated solar radiation or solar glare shall not be directed onto nearby properties and public roads. The applicant shall submit documentation to verify compliance with this section. When deemed necessary, the Zoning

Administrator may require a report from a registered civil engineer or other professional deemed qualified by the Zoning Administrator, attesting to the glare and radiation impact on nearby properties and public roads.

3. Small SES Roof-Mounted Systems
   a. A solar energy system on the roof of a principal building or accessory structure, whether an integral part of the roof structure or mounted on the finished roof structure, and whether the system is flush with the roof or projects from or at an angle to the roof, may exceed the maximum height standard for the structure to which it is attached according to the district in which it is to be located, but no portion of the system shall extend more than five (5) feet above the roof surface to which it is attached.
   b. Roof-mounted solar collection panels located on a roof having a slope of less than thirty (30) degrees shall be set back from an exterior edge of the roof a minimum distance of five (5) feet.
4. Small SES Ground-Mounted Systems
   a. Ground mounted solar collection panels and associated equipment shall comply with the standards for accessory structures for the district in which the panels are to be located except that in no case shall the panels exceed eighteen (18) feet in height.
   b. In the case of a ground mounted solar panel(s) located on a lot that is adjacent to a lot in an Conservation or Residential District, where the panels are to be located within one hundred fifty (150) feet of a shared lot line with such lot, the panels shall be screened from view from such lot. The screening shall consist of one (1) evergreen tree per twenty (20) linear feet of panel length and such trees shall be spaced no less than fifteen (15) feet and no greater than twenty-five (25) feet apart. Trees shall be a minimum height equal to fifty percent (50%) of the height of the panel(s) at the time of planting. Required screening need not be in the immediate area of the panels that the plantings are intended to screen if the planting locations provide for the intended screening effect. All plant material shall be maintained in a healthy condition to provide the necessary screening and replaced upon death or disease.
      1. The Zoning Administrator may permit a maximum fifty percent (50%) reduction in the number and size of tree plantings where the adjacent property is vacant and not likely to be developed within the next five (5) years based on nearby development trends during the preceding five (5) years, where natural features are present that serve to assist in the screening of the panel(s) such as existing topographic or vegetative conditions, where existing structures will assist in the screening of the panel(s), and/or where other conditions may be present that make typical screening requirements ineffective or otherwise unnecessary.
   c. If a ground mounted Small SES ceases to operate or is abandoned for six (6) months, or is deemed by the Building Inspector to be unsafe or not consistent with the building code, the applicant shall repair and restore the system to good working order within a reasonable time set by the Zoning Administrator or otherwise remove the system in its entirety including posts, equipment, panels, foundations and other features and restore the ground to its preconstruction state.

D. Medium Solar Energy Systems (Medium SES)

1. Medium SES Authorization, Review and Approval Procedures: A Medium SES is an authorized permitted use in all districts. Medium SES shall be subject to Planning Commission approval according to Article 6, and the Planning Commission finds that the application complies with the standards of Article 6 and this subsection (C).
2. Medium SES General Provisions
   a. Mechanical equipment, excluding solar panels, shall be screened from view from public streets and any property within a designated Conservation or Residential District, where such road or property is within one hundred (100) feet of the equipment, by a masonry wall, evergreen vegetation or other screening measure of similar effectiveness.
   b. Solar energy system equipment is prohibited in a front yard and shall comply with the side and rear yard setback standards of Table 3-4 of Article 3.
   c. Solar panels shall be placed such that concentrated solar radiation or solar glare shall not be directed onto nearby properties and public roads. The applicant shall submit documentation to verify compliance with this section, prepared by a registered civil engineer or other professional deemed qualified by the Planning Commission.
3. Medium SES Roof-Mounted Systems
   a. A solar energy system on the roof of a principal building or accessory structure, whether an integral part of the roof structure or mounted on the finished roof structure, and whether the system is flush with the roof or projects from or at an angle to the roof, may exceed the maximum height standard for the structure to which it is attached according to the district in which it is to be located, but no

portion of the system shall extend more than five (5) feet above the roof surface to which it is attached.

b. Roof-mounted solar collection panels located on a roof having a slope of less than thirty (30) degrees shall be set back from an exterior edge of the roof a minimum distance of five (5) feet.

4. Medium SES Ground-Mounted Systems
   a. Ground-mounted solar collection panels are prohibited in a front yard and shall be setback from all property lines the same distance as required for the principal building on the property. Such setback shall be a minimum of fifty (50) feet where the respective yard is adjacent to property in a Conservation or Residential District.
   b. Ground-mounted solar collection panels shall not exceed eighteen (18) feet in height.
   c. Screening of ground-mounted panels shall be provided as required for Small SES, according to subsection (C).
   d. If a ground mounted Medium SES ceases to operate or is abandoned for six (6) months, or is deemed by the Building Inspector to be unsafe or not consistent with the building code, the applicant shall repair and restore the system to good working order within a reasonable time set by the Zoning Administrator or otherwise remove the system in its entirety including posts, equipment, panels, foundations and other features and restore the ground to its preconstruction state.

E. Large Solar Energy Systems (Large SES)

1. Large SES Authorization, Review and Approval Procedures: Large SES are classified as special land uses and are authorized in the Rural Residential District and Industrial Districts only.
2. Large SES General Provisions: Large SES shall comply with the site development standards of subsection (D) for Medium SES, and shall be subject to the special land use approval standards of Chapter 7.

F. Exception for Self-Contained Solar Energy Systems: Solar energy systems that do not exceed four (4) square feet in total solar collector panel area, to provide energy to operate the device to which they are attached such as in the case of a panel connected to an exterior light or an attic fan, are permitted in all districts and may be erected without the issuance of a zoning permit.

Section 18.24 Vehicle / Car Wash Establishment

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage.

B Additional Standards:

1. The lot shall have frontage on and gain direct access to a paved road.
2. All washing activities shall be carried on within an enclosed building or under a covered structure with side walls separating individual washing bays.
3. Outdoor vacuuming activities shall be located in a rear yard only and shall be set back a minimum of fifty (50) feet from a lot in a Conservation or Residential District or otherwise used for dwelling purposes.
4. Maneuvering lanes and stacking lanes shall be provided and located so as to provide sufficient room to avoid waiting cars without encroaching into a road right-of-way.
5. Each bay shall be graded and drained to collect run-off originating in the bay.
6. Trash containers shall be provided and emptied as necessary to prohibit litter.

Section 18.25 Vehicle Repair Shops and Service Stations

A. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. Fuel pumps, pump canopies, and above and below ground storage of fuel and other flammable materials shall be setback a minimum distance of twenty-five (25) feet from all lot lines. Setbacks for canopies shall be measured from the edge of the canopy.

B Additional Standards:

1. The lot shall have frontage on at least one (1) paved road classified by the County Road Commission as a primary road according to PA 51 of 1951, and take its access from such road.
2. Hydraulic hoists, service pits, lubricating, greasing, washing, and repair equipment and operations shall be located within a completely enclosed structure.
3. All outside storage areas for trash, used tires, auto parts, disabled vehicles, wrecked vehicles, or partially dismantled vehicles, and similar items, shall be enclosed by a six (6) foot screening fence or wall. Such

fencing and storage area is prohibited in a front yard and shall be set back a minimum of ten (10) feet from side and rear lot lines.

4. No disabled, wrecked, or partially dismantled vehicle shall be parked or stored on the lot for a period exceeding thirty (30) days, and such parking or storage shall not exceed two (2) vehicles per service bay.
5. All lighting mounted to the underside of a canopy shall be fully recessed.
6. There shall be provided adequate on-site capacity to accommodate a minimum of two (2) waiting vehicles at each gasoline pump without encroachment into public right-of-ways or the entering and exiting of service bays.
7. The application shall identify the extent, quantities, and types of explosive, flammable, or otherwise hazardous materials that may be used, and the measures to be used for proper handling, storage, and disposal of such materials.

Section 18.26 Wind Energy Turbines

A. Definitions: For the purposes of this Section, the following phrases shall have the following meanings:

1. Ambient Sound Level: The amount of background noise at a given location prior to the installation of a WET which may include, but not be limited to, traffic, machinery, lawnmowers, human activity, and the interaction of wind with the landscape. The ambient sound level is measured on the dB(A) weighted scale as defined by the American National Standards Institute.
2. Anemometer: A temporary wind speed indicator constructed for the purpose of analyzing the potential for utilizing a wind energy turbine (WET) at a given site. This includes the tower, base plate, anchors, cables and hardware, wind direction vanes, booms to hold equipment, data logger, instrument wiring, and any telemetry devices that are used to monitor or transmit wind speed and wind flow characteristics over a period of time.
3. Blade: The aerodynamic surface that catches the wind.
4. Decommissioning: The process of terminating operation and completely removing a wind energy turbine (WET) and all related buildings, structures, foundations, access roads, and equipment.
5. KW-kilowatt is a measure of power for electrical current equal to 1000 watts.
6. KWh-Kilowatt-hour: A measure of energy equal to the use of one kilowatt in one hour.
7. Large Wind Energy Turbine (Large WET): A wind energy turbine that is tower-mounted and has a nameplate capacity that exceeds two hundred fifty (250) kilowatts.
8. Medium Wind Energy Turbine (Medium WET): A wind energy turbine that is tower-mounted and has a nameplate capacity that exceeds thirty (30) kilowatts but does not exceed two hundred fifty (250) kilowatts.
9. Net-Metering: A special metering and billing agreement between utility companies and their customers, which facilitates the connection of renewable energy generating systems to the power grid.
10. Occupied Building: A residence, school, hospital, church, public library, business, or other building in which the public may assemble or otherwise occupy.
11. Operator: The entity responsible for the day-to-day operation and maintenance of a wind energy turbine (WET).
12. Owner: The individual or entity, including their respective successors and assigns, which have an equity interest or own the wind energy turbine (WET).
13. Shadow Flicker: The moving shadow, created by the sun shining through the rotating blades of a wind energy turbine (WET). The amount of shadow flicker created by a WET is calculated by a computer model that takes into consideration turbine location, elevation, tree cover, location of all structures, wind activity, and sunlight.
14. Small Tower-Mounted Wind Energy Turbine: A wind energy turbine (WET) that is tower-mounted and has a nameplate capacity that does not exceed thirty (30) kilowatts.
15. Small Structure-Mounted Wind Energy Turbine: A wind energy turbine that is attached to a structure's roof, walls, or other elevated surface and has a nameplate capacity that does not exceed thirty (30) kilowatts.
16. Total Height: The vertical distance measured from the ground level at the base of a wind energy turbine (WET) to the uppermost vertical extension of any blade, or the maximum height reached by any part of the wind energy turbine (WET).
17. Tower: A freestanding monopole that supports a wind energy turbine (WET).
18. Wind Energy Turbine (WET): A wind energy conversion system that converts wind energy into electricity through the use of a turbine mounted on a tower or other structure, including any base, blade, foundation, generator, nacelle, rotor, tower, transformer, vane, wire, inverter, batteries, or other components used in the system, and may include structures and buildings accessory to such system.

B. Additional Application Requirements for Small Structure-Mounted WETs and Small Tower-Mounted WETs: The following information shall be provided in addition to the application information required by Section 2.4(B) for plot plan approval.

1. Maps (drawn to scale) showing the proposed location of all components and accessory equipment of the Small Structure-Mounted WET or Small Tower-Mounted WET, property lines, physical dimensions of the property, existing buildings, setback lines, right-of-way lines, public easements, overhead utility lines, sidewalks, non-motorized pathways, roads and contours. The plot plan shall include adjoining properties as well as the location and use of all structures.
2. Total proposed number of Small Structure-Mounted WETs and Small Tower-Mounted WETs and the proposed type and height of each to be constructed; including the manufacturer and model, product specifications including maximum noise output (measured in decibels), total rated generating capacity, dimensions, rotor diameter, and a description of ancillary facilities.
3. Documented compliance with the noise requirements of this Ordinance.
4. Documented compliance with applicable local, state and national regulations including, but not limited to, all applicable safety, construction, environmental, electrical, communications, and FAA requirements.
5. Proof of applicant's liability insurance.
6. Evidence that the utility company has been informed of the customer's intent to install an interconnected, customer-owned generator and that such connection has been approved. Off-grid systems shall be exempt from this requirement.
7. Evidence documenting that the WET shall not interfere with communication systems including radio, telephone, television, satellite or emergency systems.
8. Other relevant information as may be reasonably requested.

C. Additional Application Requirements for a Medium WET and Large WET: The following information shall be provided in addition to the application information required by Article 6 (Site Plan Review) and Article 7 (Special Land Uses).

1. Shadow Flicker Analysis: An analysis on potential shadow flicker on any occupied building with direct line-of-sight to the Medium or Large WET. The analysis shall identify the locations of shadow flicker that may be caused by the project and the expected durations of the flicker at these locations from sun-rise to sun-set over the course of a year, and describe measures that shall be taken to eliminate or mitigate the problems.
2. Site Plan Drawing: Location and height of all proposed Medium or Large WETs, buildings, structures, ancillary equipment, underground utilities and their depth, towers, security fencing, access roads (including width, composition, and maintenance plans), electrical sub-stations, and other above-ground structures and utilities associated with the WETs.
3. Site Plan Documentation: The following documentation shall be included with the site plan:
   a. The contact information for the owner and operator of the Medium or Large WET as well as contact information for all property owners on which the WET is located.
   b. A copy of the lease, or recorded document, with the landowner(s) if the applicant does not own the land for the proposed Medium or Large WET. A statement from the landowner(s) of the leased site that he/she will abide by all applicable terms and conditions of the zoning permit, if approved.
   c. In the case of a Condominium Development, a copy of the Condominium Development's Master Deed and Bylaws addressing the legal arrangement for the WET.
   d. The proposed number, representative types and height of each Medium or Large WET to be constructed; including their manufacturer and model, product specifications including maximum noise output (measured in decibels), total rated capacity, rotor diameter, and a description of ancillary facilities.
   e. Documents shall be submitted by the developer/manufacturer confirming specifications for separation distances between WETs.
   f. Documented compliance with the noise, vibration and shadow flicker requirements of this Ordinance.
   g. Engineering data concerning construction of the Medium or Large WET and its base or foundation, which may include, but not be limited to, soil boring data.
   h. A certified registered engineer shall certify that the Medium or Large WET meets or exceeds the manufacturer's construction and installation standards.
   i. A copy of the maintenance and operation plan, including anticipated regular and unscheduled maintenance. Additionally, a description of the procedures that will be used for lowering or removing the Medium or Large WET to conduct maintenance, if applicable.

j. Documented compliance with applicable local, state and national regulations including, but not limited to, all applicable safety, construction, environmental, electrical, and communications. The Medium or Large WET shall comply with Federal Aviation Administration (FAA) requirements, Michigan Airport Zoning Act, Michigan Tall Structures Act, and any applicable airport overlay zone regulations.
k. Proof of applicant's liability insurance shall be required bi-annually
l. Evidence that the utility company has been informed of the customer's intent to install an interconnected, customer-owned generator and that such connection has been approved. Off-grid systems shall be exempt from this requirement.
m. A written description of the anticipated life of each Medium or Large WET; the estimated cost of decommissioning; the method of ensuring that funds will be available for decommissioning and site restoration; and removal and restoration procedures and schedules that will be employed if the WETs become inoperative or non-functional.
n. The applicant shall submit a decommissioning plan that shall be carried out at the end of the Medium or Large WET's useful life, and shall describe any agreement with the landowner regarding equipment removal upon termination of the lease.
o. The following additional information requirements shall apply to Large WETs only:
    1) A description of the routes to be used by construction and delivery vehicles and of any road improvements that will be necessary to accommodate construction vehicles, equipment or other deliveries, and an agreement or bond which guarantees the repair of damage to public roads and other areas caused by construction of the Large WET.
    2) A study assessing potential impacts on the natural environment including, but not limited to, bird and bat species, endangered species and other wildlife. The study shall conform to state and federal wildlife agency recommendations and shall address feeding, nesting and migration. The study shall be prepared by a certified wildlife biologist and shall identify any proposed mitigation measures to minimize impacts.
    3) Evidence documenting that the proposed WET location shall have sufficient annual wind resources for the operation of the WET system.

D. Anemometers

1. The construction, installation, or modification of an anemometer tower shall require a zoning permit and shall conform to all applicable local, state, and federal applicable safety, construction, environmental, electrical, communications, and FAA requirements, including building and mechanical building permits.
2. An anemometer shall be subject to the height, setback, separation, location, safety, and decommissioning provisions that correspond to the size of the WET that is being contemplated for the site.
3. An anemometer shall be permitted for no more than two (2) years.

E. Compliance with Table 4-4: All WETs shall comply with the provisions of Table 3-4 of Article 3 except where this Section provides otherwise.

F. Standards Applicable to All WETs: The following provisions apply to all WETs unless provided otherwise.

1. Visual Appearance
    a. WETs, including accessory buildings and related structures shall be of a non-reflective, non-obtrusive color. The appearance of the turbine, tower, and any ancillary facility shall be maintained throughout the life of the WET.
    b. A WET shall not be artificially lighted, except to the extent required by the FAA or other applicable authority, or otherwise necessary for the reasonable safety and security thereof.
    c. A WET shall not be used for displaying any advertising (including flags, streamers, or decorative items), except for identification of the turbine manufacturer.
2. Ground Clearance: The lowest extension of any blade or other exposed moving component of a WET shall be at least fifteen (15) feet above the ground and any above-ground outdoor area intended for human use such as balconies or roof gardens.
3. Noise: Noise emanating from the operation of WETs shall not exceed, at any time, the lowest ambient sound level that is present between the hours of 9:00 p.m. and 9:00 a.m. at any property line of a residential or agricultural use parcel or from the property line of parks, schools, hospitals, and churches. Noise emanating from the operation of WETs shall not exceed, at any time, the lowest ambient noise level plus 5 dBA that is present between the hours of 9:00 p.m. and 9:00 a.m. at any property line of a non-residential or non-agricultural use parcel.
4. Vibration: Vibrations shall not be produced that are humanly perceptible beyond the property on which a WET is located.
5. Guy Wires: Guy wires shall not be permitted as part of the WET.

6. Ice Throw: Ice throw or shedding from a WET shall not cross a property line or onto any right-of-way or overhead utility service.
7. Electrical System: All electrical controls, control wiring, grounding wires, power lines, and all other electrical system components shall be placed underground within the boundary of each lot at a depth designed to accommodate the existing land use to the maximum extent practicable. Wires necessary to connect the wind generator to the tower wiring are exempt from this requirement. Above ground wiring is permitted in the case of a Small Structure-Mounted WET or Small Tower-Mounted WET provided such wiring is necessary to connect the wind generator to the tower wiring, the tower wiring to the disconnect junction box and the grounding wires.
8. Signal Interference: A WET shall not interfere with communication systems such as, but not limited to, radio, telephone, television, satellite, or emergency communication systems.
9. Industry Standards
   a. The design of WETs shall conform to all applicable industry standards and shall meet or exceed any standards and regulations of the Federal Aviation Administration (FAA), Michigan Aeronautics Commission (MAC), Michigan Public Service Commission, National Electric Safety Code, Federal Energy Regulatory Commission, and any other state and federal agency.
   b. The structural integrity of a Medium or Large WET shall conform to the design standards of the International Electrical Commission, specifically IEC 61400-1, "Wind Turbine Safety and Design," IEC 61400-22 "Wind Turbine Certification," and IEC 61400-23 "Blade Structural Testing," or any similar successor standards.

G. Additional Standards Applicable to Small Structure-Mounted WETs and Small Tower-Mounted WETs: The following provisions shall apply to Small Structure-Mounted WETs and Small Tower-Mounted WETs in addition to those of subsection (F).

1. Small Structure-Mounted WET
   a. Height: The height of a Small Structure-Mounted WET shall not exceed (15) feet as measured from the highest point of the roof or other structure to which it is attached, excluding chimneys, antennae, and other similar protuberances.
   b. Setback: The setback of a Small Structure-Mounted WET shall be a minimum of fifteen (15) feet from a property line, public right-of-way, public easement, or overhead utility lines if mounted directly on a roof or other elevated surface of a structure. The setback shall be measured from the furthest outward extension of all moving parts.
   c. Quantity: No more than three (3) Small Structure-Mounted WETs shall be installed on any lot in a Conservation or Residential District or other residentially-used lot.
   d. Separation: If more than one Small Structure-Mounted WET is installed, a distance equal to the height of the highest Small Structure-Mounted WET must be maintained between the base of each Small Structure-Mounted WET.
2. Small Tower-Mounted WET
   a. Height: The total height of a Small Tower-Mounted WET shall not exceed one hundred (120) feet.
   b. Occupied Building Setback: The setback from all occupied buildings on the applicant's lot shall be a minimum of twenty (20) feet measured from the base of the tower.
   c. Location: A Small Tower-Mounted WET shall be located in a rear yard only, except that a Small Tower-Mounted WET may be located in a front or side yard provided it is setback a minimum distance of one hundred and fifty (150) feet from such lot lines, as measured from the base of the WET.
   d. Other Setbacks: The setback shall be equal to 1 1/2 times the total height of the Small Tower-Mounted WET, as measured from the base of the Tower, from the property line, public right-of-way, public easement, or overhead public utility lines. This setback may be reduced if the applicant provides a registered engineer's certification that the WET is designed to collapse, fall, curl, or bend within a distance or zone shorter than the height of the wind turbine.
   e. Quantity: No more than one (1) Small Tower-Mounted WET shall be installed on any lot in a Conservation or Residential District or other residentially-used lot.

H. Additional Standards Applicable to Medium WETs and Large WETs: The following provisions shall apply to both Medium WETs and Large WETs unless specified otherwise, in addition to those of subsection (F).

1. Shadow Flicker: WETs shall be designed and located so as to minimize shadow flicker on a roadway and prevent shadow flicker on any existing occupied structures located off of the lot on which the WET is located. The Planning Commission may require special operational hours of a WET to ensure these requirements are met.
2. Safety Requirements
   a. If a Medium or Large WET is connected to a public utility system for net-metering purposes, it shall meet the requirements for interconnection and operation as set forth in the public utility's then-current service regulations applicable to wind power generation facilities, and the connection shall be inspected by the appropriate public utility.
   b. A Medium or Large WET shall be equipped with an automatic braking or governing system to prevent uncontrolled rotation, over-speeding, and excessive pressure on the tower structure, rotor blades and other wind energy components unless the manufacturer certifies that a braking system is not necessary.
   c. Security measures shall be in place to prevent unauthorized trespass and access. Each Medium or Large WET shall not be climbable up to fifteen (15) feet above ground surfaces. All access doors to a WET and electrical equipment shall be locked and/or fenced as appropriate, to prevent entry by non-authorized persons.
   d. All spent lubricants, cooling fluids, and any other hazardous materials shall be properly and safely removed in a timely manner.
   e. Each Medium or Large WET shall have a minimum of one (1) sign, not to exceed two (2) square feet in area, posted at the base of the tower and on any security fence if applicable. The sign shall include, at a minimum, warnings of high voltage, manufacturer's and owner/operators name, and emergency contact numbers.
3. Decommissioning:
   a. WET owners or operators shall complete decommissioning within twelve (12) months after the end of the useful life. A WET shall be presumed to be at the end of its useful life if no electricity is generated for a continuous period of twelve (12) months. All decommissioning expenses are the responsibility of the owner or operator.
   b. Decommissioning shall include the removal of each WET, buildings, electrical components as well as any other associated facilities. Foundations shall be removed to a minimum depth of sixty (60) inches below ground elevation. Following removal, the location of any remaining wind turbine foundation shall be identified on a map as such and recorded with the deed to the property with the County Register of Deeds.
   c. All access roads to a WET shall be removed, cleared, and graded unless the property owner requests, in writing, a desire to maintain the access road. The Township shall not be assumed to take ownership of any access road unless through official action of the Township Board.
   e. The site and any disturbed earth shall be stabilized, graded, and cleared of any debris. If the site is not to be used for agricultural practices following removal, the site shall be seeded to prevent soil erosion, unless the property owner submits are valid basis for not seeding the area.
   f. A performance guarantee shall be posted pursuant to Section 2.6 for the decommissioning of WETs.
4. Medium WETs: The following additional requirements apply to Medium WETs only.
   a. Location: A Medium Tower-Mounted WET shall be located in a rear yard only where an occupied building is on the lot, except that a Medium Tower-Mounted WET may be located in a front or side yard provided it is setback a minimum distance of one hundred and fifty (150) feet from such lot lines, as measured from the base of the WET. In the case of a condominium development, the Medium WET shall only be located in a General Common Element.
   b. Height: The total height of a Medium WET shall not exceed one hundred and fifty (150) feet.
   c. Quantity: No more than one (1) Medium WET shall be installed for every two and one-half (2.5) acres of land included in the lot, except where the Planning Commission finds that size, configuration, or other features of the property on which the WET is to be located, or the character of the surrounding area, permits a greater density with limited impact on the surrounding area.
   d. Setback & Separation:
      1) Property Line Setbacks: Except as provided by subsection (2) below, an Medium WET shall be a minimum distance from all lot lines equal to the total height of the Medium WET as measured from the base of the tower. This setback may be reduced by the Planning Commission if the

applicant provides a registered engineer's certification that the WET is designed to collapse, fall, curl, or bend within a distance or zone shorter than the height of the WET.

2) Public Road Setbacks: A Medium WET shall be set back from the public road a minimum distance equal to the total height of the Medium WET, measured from the tower base.
3) Occupied Building Setback: The setback from all occupied buildings on the applicant's lot shall be a minimum of twenty (20) feet, measured from the base of the tower.
4) Communication and Electrical Lines Setback: A Medium WET shall be set back from the nearest above-ground public electric power line or communication line a minimum distance equal to the total height of the Medium WET, as measured from the tower base.
5) Tower Separation: MWE towers shall be separated from each other a minimum distance

6. Large WETs: The following additional requirements apply to Large WETs only:
   a. Ground Clearance: The lowest extension of any blade or other exposed moving component of an Large WET shall be at least twenty (20) feet above the ground, at the highest point of the ground elevation within fifty (50) feet of the base of the tower.
   b. Quantity: The maximum number of Large WETs shall be determined based on setback and separation standards.
   c. Access Driveway: Each Large WET shall require the construction of a private road to offer an adequate means by which the Township may readily access the site in the event of an emergency.
   d. Lot Area: A Large WET shall not be located on a lot of less than ten (10) acres.
   e. Setback & Separation:
      1) Property Line Setbacks: Except as provided by subsection (2) below, a Large WET shall be a minimum distance from all lot lines equal to the total height of the Large WET as measured from the base of the tower. This setback may be reduced by the Planning Commission where the adjoining property is owned, leased or otherwise under the control of the applicant as part of a unified multi-parcel WET project, but in case shall the setback be less than one hundred (100) feet.
      2) Road Setbacks: A Large WET shall be set back from the nearest public road a minimum distance equal to one hundred and ten percent (110%) of its total height.
      3) Occupied Building Setback: A Large WET shall be set back from the nearest occupied building that is located on the same lot as the Large WET a minimum one and one-half (1.5) times its total height, or one thousand (1000) feet, measured from the tower base, whichever is greater. A Large WET shall be set back from the nearest building intended to be occupied, that is located on a lot not to be occupied by a LWET, a minimum distance of two thousand (2,000) feet, measured from the tower base.
      4) Communication and Electrical Lines: Each Large WET shall be set back from the nearest above-ground public electric power line or communication line a minimum distance no less than four hundred (400) feet or one and one-half (1.5) times its total height, whichever is greater, measured from the tower base.
      5) Tower Separation: Large WET towers shall be separated from each other a minimum distance according to industry standards and manufacturer recommendations, but in no case less than three (3) times the turbine rotor diameter, measured from the tower base.
   f. A sound pressure level analysis shall be conducted from a reasonable number of sampled locations at the perimeter and in the interior of the property containing any Large WETs to demonstrate compliance with the requirements of this Ordinance. Proof of compliance with the noise standards is required within ninety (90) days of the date the Large WET becomes operational. Sound shall be measured by a third-party, qualified professional.
   g. All towers shall be inspected annually by a certified registered Michigan licensed engineer and authorized factory representative to insure the structural integrity of the tower, and appurtenances added to the tower. An annual maintenance report shall be provided to the Zoning Administrator on or before August 1st.

Section 18.27 Wireless Communication Facilities

A. Definitions: For the purposes of this Section, the following phrases shall have the following meanings:

1. Collocate: To place or install wireless communications equipment on an existing wireless communications support structure or in an existing equipment compound. "Collocation" has a corresponding meaning.
2. Equipment compound: An area surrounding or adjacent to the base of a wireless communications support structure and within which wireless communications equipment is located.
3. Wireless communications equipment: The set of equipment and network components used in the provision of wireless communications services, including, but not limited to, antennas, transmitters, receivers, base stations, equipment shelters, cabinets, emergency generators, power supply cables, and coaxial and fiber optic cables, but excluding wireless communications support structures.
4. Wireless communications support structure: A structure that is designed to support, or is capable of supporting, wireless communications equipment, including a monopole, self-supporting lattice tower, guyed tower, water tower, utility pole, or building.
5. Wireless Communication Facility: All structures and accessory facilities, and improvements thereto, relating to the use of the radio frequency spectrum for the purpose of transmitting or receiving radio signals; including, but not limited to, equipment compounds, wireless communications equipment, and wireless communications support structures. Not included in this definition are: citizen band radio facilities; short wave receiving facilities; radio and television broadcast reception facilities; satellite dishes; federally licensed amateur (HAM) radio facilities, towers for personal communications only, and governmental facilities which are subject to state or federal law or regulations which preempt municipal regulatory authority.
6. Class One Wireless Communication Facility: Any wireless communication facility and modifications thereto that meet all of the following requirements:
   a. No construction or other improvements provide for the erection of a new wireless communications support structure, but may provide for an increase in height of an existing tower as provided by subsection (d)(1) below.
   b. All proposed wireless communications equipment will be collocated on an existing wireless communications support structure or in an existing equipment compound.
   c. The existing wireless communications support structure or existing equipment compound is in compliance with this Ordinance or was previously approved by the municipality in which it is located.
   d. The proposed collocation of equipment shall not do any of the following:
      1) Increase the overall height of the wireless communications support structure by more than 20 (twenty) feet or 10% (ten percent) of its original height, whichever is greater.
      2) Increase the width of the wireless communications support structure by more than the minimum necessary to permit collocation.
      3) Increase the area of the existing equipment compound to greater than 2,500 square feet.
      4) Be in violation of the terms and conditions of any previous final approval of the wireless communications support structure or equipment compound by the then-designated approving body.
7. Class Two Wireless Communication Facility: The erection of a new wireless communications support structure, or any modification of an existing wireless communication facility that is not classified as Class One Wireless Communication Facility.

B. Application, Review and Approval for Class One Wireless Communication Facility: A Class One Wireless Communication Facility constitutes a use permitted by right in any district, subject to site plan approval according to Article 6.

1. Application Review Time Frame and Fees
   a. After a Class One application for a wireless communication facility is filed with the Planning Commission, the Planning Commission shall determine whether the application is administratively complete. Unless the Planning Commission proceeds as provided under subsection (b) below, the application shall be considered to be administratively complete when the Planning Commission makes that determination or the passing of fourteen (14) business days after the Planning Commission receives the application, whichever occurs first.
   b. If, before the expiration of the fourteen (14) day period under subsection (a) above, the Planning Commission notifies the applicant that the application is not administratively complete, specifying the information necessary to make the application administratively complete, or notifies the applicant that a fee required to accompany the application has not been paid, specifying the amount due, the

running of the 14-day period under subsection (a) above is tolled until the applicant submits to the body or official the specified information or fee amount due. The notice shall be given in writing or by electronic notification. A fee required to accompany any application shall not exceed actual, reasonable costs to review and process the application or $1,000.00, whichever is less.

c. The Planning Commission shall approve or deny the application not more than sixty (60) days after the application is considered to be administratively complete. If the Planning Commission fails to timely approve or deny the application, the application shall be considered approved and the Planning Commission shall be considered to have made any determination required for approval.

C. Application, Review and Approval for Class Two Wireless Communication Facility: A Class Two Wireless Communication Facility constitutes a special land use and shall be subject to this Ordinance's provisions addressing the same including compliance with Article 6 (Site Plan Review), Article 7 (Special Land Uses), and the following provisions:

1. Application Review Time Frame and Fees: The provisions of subsection (B)(1) above shall apply to Class Two applications for wireless communication equipment except that the Planning Commission shall approve or deny the application not more than ninety (90) days after the application is considered to be administratively complete.
2. Additional Application Requirements: In addition to submitting the information required for all special land use applications, including a site plan pursuant to Article 6, each applicant for a Class Two wireless communication facility shall provide the following additional information. Any information of an engineering nature that the applicant submits, whether civil, mechanical, electrical, or structural, shall be certified by a licensed professional engineer of applicable expertise registered in the State of Michigan.
   a. An inventory of its existing towers, antennas, or sites approved for towers or antennas, that are within the Township and one (1) mile of the border thereof, including specific information about the location, height, and design of each tower, the distance from the proposed tower, the owner(s)/operator(s) of the existing tower(s), and any additional information that is relevant in terms of potential collocation or in demonstrating the need for the proposed facility.
   b. Elevation drawings of the proposed tower and any other structures.
   c. The distance between the proposed tower to dwellings within a one-half (1/2) mile radius, and the distance to Residential districts and platted and similar neighborhood developments.
   d. Method of fencing and finished color and, if applicable, the method of camouflage.
   e. A written statement by the applicant as to whether construction of the tower will accommodate collocation of additional antennae for future users.
   f. Identification of the entities providing the lines that connect a provider's towers/cell sites to one or more cellular telephone switching offices, long distance providers, and/or the public switched telephone network (backhaul routes) for the tower(s) described in the application and other cellular sites owned or operated by the applicant in the Township.
   g. A description of the suitability of the use of existing towers, other structures, or alternative technology not requiring the use of towers or structures, to provide the services of the proposed new tower.
   h. A certification by a professional engineer of applicable expertise licensed in Michigan that all construction features of the tower comply with the requirements of all agencies having jurisdiction and the State Construction Code.

D. Compliance with Table 3-4: See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks, and maximum building height and lot coverage, except as follows:

1. The lot on which a tower is located shall comply with the minimum lot area requirement of Table 3-4. A smaller portion of said lot may be leased for tower purposes and such leased area need not comply with the area requirements of Table 3-4.
2. Class Two towers and antennas shall be set back from lot lines a minimum distance equal to the tower's height, including antennas, except where the application documents that the tower is designed to fall upon itself, in which case the minimum setback shall be one-half the height of the tower but not less than one-hundred (100) feet. Setbacks shall be measured from the leading edge of the tower's base to the respective lot line.
3. No tower shall exceed one hundred ninety five (195) feet in height, measured from the base of the tower to the highest point of the tower including antennae. All towers and antenna shall comply with the height restrictions of any airport management plan approved by the Michigan Aeronautics Commission.

E. Additional Standards:

1. Separation Distances: The following separation distances shall apply to Class Two wireless communication facilities except that the Planning Commission may reduce the standard separation distance by no greater than twenty-five percent (25%) upon a finding that there exist on-site or surrounding conditions that mitigate the need for such separation distances and that the purpose of this Ordinance will be preserved. Separation distances shall be measured from the base of the tower to the lot line of the off-site use except where otherwise noted.

Off-Site Use or Designated Area	Separation Distance
Existing dwellings.	300 feet or 150% of the tower's height, whichever is greater.
Vacant land in any district that authorizes dwellings as a permitted use.	200 feet or 100% of the tower's height, whichever is greater.
Land in a Commercial or Industrial District, whether vacant or otherwise.	The setback standards of Table 3-4 or the tower's height, whichever is greater.
Another communication tower.	1 mile, measured by a straight line between the base of the existing and proposed tower.

2. Fencing and Lighting
   a. The base of a tower shall include a minimum six (6) foot high fence with anti-climbing measures.
   b. Towers and antenna shall not be artificially lighted unless required by the Federal Aviation Administration or Federal Communications Commission. If lighting is required, the lighting plan shall cause the least disturbance to surrounding uses.
3. Tower Construction
   a. Towers shall be of monopole construction. Guy wires are prohibited.
   b. Towers shall be of a white, light gray, silver or other similar color that blends with the background sky, and shall be constructed of or treated with corrosive resistant material.
   c. All towers and antennas including all support systems, antenna mounts, structural and electrical components, and wind load resistance, shall comply with the most current standards and regulations of the Federal Aviation Authority, Federal Communications Commission, State Construction code, and all other codes and agencies having jurisdiction.
   d. All new communication towers shall be designed and constructed so as to accommodate collocation of a minimum of three (3) wireless communication facilities. This requirement shall not apply in the case where the tower is less than one-hundred (100) feet in height.
4. Landscaping and Signage
   a. Signage shall be limited to emergency information only except as may be required by law.
   b. Trees shall be established, if not already present, that effectively screen the view of the tower facility from nearby residential properties, and shall provide for coniferous plantings spaced at no greater than fifteen (15) feet apart and located within forty (40) feet of the perimeter of the tower facility and within any leased land area comprising the tower facility.
5. Presence of Personnel: No persons shall be located on a communication tower site except for the occasional presence of personnel associated with periodic maintenance or emergency conditions.
6. General Design: The design of buildings and structures shall, to the greatest extent practical, use materials, colors, textures and screening that will encourage their compatibility with surrounding buildings. Where an antenna is installed on a structure other than a tower, the antenna and supporting equipment shall be of a color to make the antenna and equipment as visually unobtrusive as reasonably practical. Accessory structures shall not exceed eight-hundred (800) sq. ft. of gross floor area.
7. Collocation
   a. Requirement for Collocation:
      1) A permit for the construction and use of a Class Two communication tower shall not be granted unless and until the applicant demonstrates that a feasible collocation is not available for the coverage area and capacity needs.
   b. Feasibility of Collocation: Collocation shall be deemed to be feasible and practical for purposes of this subsection (7) except where satisfactory evidence is submitted demonstrating that no existing tower, structure or alternative technology can accommodate the applicants proposed antenna. Such evidence may consist of any of the following:
      1) No existing towers or structures are located within the geographic area that meets applicants engineering requirements.

2) Existing towers or structures are not of sufficient height to meet applicant's engineering requirements.
3) Existing towers or structures do not have sufficient structural strength to support applicant's proposed antenna and related equipment.
4) The applicant's proposed antenna would cause electromagnetic interference with the antenna on the existing towers or structures, or the antenna on the existing towers or structures would cause interference with the applicant's proposed antenna.
5) The fees, costs, or contractual provisions required by the owner in order to share an existing tower or structure or to adapt an existing tower or structure for sharing are unreasonable. Costs exceeding new tower development are presumed to be unreasonable.
6) The applicant demonstrates that there are other limiting factors that render existing towers and structures unsuitable.
7) The applicant demonstrates that an alternative technology that does not require the use of towers or structures, such as a cable micro cell network using multiple low-powered transmitters/receivers attached to a wire line system, is unsuitable. Costs of alternative technology that exceed new tower or antenna development shall not be presumed to render the technology unsuitable.

8. Removal
   a. Any tower that is not operated for a continuous period of 365 days shall be considered abandoned, and the owner of such tower shall remove the same and the site shall be restored to the condition it existed prior to the placement of the tower within ninety (90) days of receipt of notice from the zoning administrator for such removal. In the case where there are multiple users of a single tower, removal of the tower shall be not be required until all users cease use of the tower for a continuous period of 365 days.
   b. If the required removal of a facility has not been completed within ninety (90) days of the condition specified in subsection (a) above, the facility may be removed with reliance on the security posted at the time application was made for establishing the facility.
9. Nonconforming Towers/Antenna: Nonconforming towers and antennas shall be subject to the provisions of Article 11, Nonconforming Lots, Uses, and Structures, except that a nonconforming tower or antenna that is damaged or destroyed may be rebuilt provided the new tower is of the same type, height, and location of the original tower, and the tower facility is of no greater intensity than the original facility. This provision shall apply provided all building permits for the new tower are acquired within 180 days of the damage date. If such permits are not acquired within this time frame or said permits expire, the tower or antenna shall be deemed abandoned and subject to the removal provisions of subsection (8) above.

End of Article 18

Article 19
(RESERVED for FUTURE USE)

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End of Article 19